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U.S. Department of State Diplomacy in Action

Uzbekistan

Bureau of Democracy, Human Rights, and Labor

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Uzbekistan is an authoritarian state with a population of approximately 27.3 million. The constitution provides for a presidential system with separation of powers between the executive, legislative, and judicial branches; however, in practice President Islam Karimov and the centralized executive branch dominated political life and exercised nearly complete control over the other branches. The two chamber Oliy Majlis (parliament) consisted almost entirely of officials appointed by the president and members of parties that supported him. The most recent general elections in 2004, for seats in the lower chamber of the parliament, fell significantly short of international standards. The civilian authorities generally maintained effective control over the security forces.

The government's human rights record, already poor, continued to worsen during the year. Citizens did not have the right in practice to change their government through peaceful and democratic means. Security forces routinely tortured, beat, and otherwise mistreated detainees under interrogation to obtain confessions or incriminating information. In several cases, authorities subjected human rights activists and other critics of the regime to forced psychiatric treatment. Human rights activists and journalists who criticized the government were subject to harassment, arbitrary arrest, politically motivated prosecution, and physical attack. The government generally did not take steps to investigate or punish the most egregious cases of abuse, although many officials were prosecuted for corruption. Prison conditions remained very poor and outside monitors did not have full access to places of detention. In many cases those arrested were held incommunicado for extended periods without access to family or attorneys. Criminal defendants were often deprived of legal counsel. Guilty verdicts were almost universal, and generally based upon defendants' confessions and witnesses' testimony obtained through coercion. The government tightly controlled the mass media and treated criticism of the regime as a crime. The government did not observe citizens' right to free assembly or association; police regularly detained citizens to prevent public demonstrations and authorities sought to control all nongovernmental organization (NGO) activity, forcing many local and international NGOs to close. The government restricted religious activity, treating virtually all religious observance outside state sanctioned structures as a crime. Courts convicted many independent Muslims of extremist activity, and several Protestant groups were subjected to harassment. In several cases the government pressured other countries to forcibly return Uzbek refugees who were under the protection of the Office of the UN High Commissioner for Refugees (UNHCR). There was a widespread public perception of corruption throughout society. While the government took steps to combat trafficking in persons, this remained a serious problem. The use of compulsory labor, particularly in cotton harvesting, continued.

Section 1 Respect for the Integrity of the Person, Including Freedom From:

a. Arbitrary or Unlawful Deprivation of Life

There were no confirmed reports of political killings by the government or its agents.

The government continued to refuse to authorize an independent international investigation of the alleged killing of numerous unarmed civilians during the violent disturbances of May 2005 in Andijon, in which peaceful demonstrations in support of 23 alleged Akromiya members on trial led to civil unrest. On the evening of May 12, 2005, an unknown number of individuals attacked a police garrison, seized weapons, and broke into a nearby prison and released several hundred inmates. Several witnesses claimed that on May 13, 2005, military vehicles drove into Bobur Square, where several thousand civilians had gathered, and fired repeatedly into the crowd without warning. The government claimed, based on its own investigation, that armed men in the crowd initiated the violence by firing on government forces. The estimated number of dead as a result varied between the government's total of 187 and eyewitnesses' report of several hundred. While an international investigation did not take place, government officials discussed their own investigation techniques and results with diplomats and other international representatives.

There were no further developments in the September 2005 death of Islamic cleric Shavkat Madumarov, who died in custody three days after he was sentenced to seven years' imprisonment for membership in a banned Islamic group. During the year a local human rights organization reported for the first time on the October 2005 death of Azadbek Satimov, who died in police custody in the Shahrikhon District of Andijon Province. The report stated that numerous bruises and puncture wounds on Satimov's body indicated that his death may have resulted from torture. Police alleged that Satimov killed himself by beating his head against the concrete walls of his cell.

In January 2005 the government authorized an international investigation of the death in prison that month of Samandar Umarov, who had been serving a 17 year sentence for membership in the prohibited Hizb ut Tahrir (HT) extremist political movement. While Umarov's family believed that torture was the primary cause of death, the independent forensic review, conducted by a foreign pathologist and a foreign criminal investigations expert under the auspices of Freedom House, confirmed the conclusions of the original autopsy, which were that Umarov died of a stroke.

The government previously allowed international experts to investigate the 2004 death in custody of Andrei Shelkavenko. In that case experts concluded that death did not result from police mistreatment.

The absence of independent medical examiners and frequent official pressure on families to bury bodies quickly in accordance with Islamic traditions made it difficult to confirm reports of deaths in custody as a result of torture or mistreatment.

Local and international observers reported that persons sentenced to death were often not given an adequate opportunity to mount a defense or to appeal their sentence. The government provided no notification of execution to the families of condemned persons and treated the execution dates and places of burial of executed persons as state secrets, a practice the UN Special Rapporteur on Torture condemned as "cruel and inhuman." The government considered the number of prisoners executed each year to be a state secret, and the number was impossible to estimate. In previous years Amnesty International (AI) estimated that scores were executed annually, and the local NGO Mothers against the Death Penalty and Torture had put the number at well over a hundred. According to the UN Rapporteur, at least nine inmates whose death sentences were allegedly based on forced confessions were executed between 2002 and September 2004, despite UN Commission on Human Rights' (UNCHR) requests for their cases to be reviewed.

b. Disappearance

There were no reports during the year of politically motivated disappearances. There were numerous unconfirmed reports of earlier disappearances in 2005 of persons who were present at the violent disturbances in May 2005 in Andijon. (See section 1.a.). The welfare and whereabouts of several of the refugees who were forcibly returned to the country during the year remained unknown.

There were no developments, and none were expected, in the 2004 disappearance of Farukh Haydarov, Okiljon Yunusov, and Husnuddin Nazarov.

c. Torture and Other Cruel, Inhuman, or Degrading Treatment or Punishment

Although the constitution and law prohibit such practices, police and officers of the National Security Service (NSS) routinely tortured, beat, and otherwise mistreated detainees to obtain confessions or incriminating information. Police, prison officials, and the NSS allegedly used suffocation, electric shock, deprivation of food and water, and sexual abuse, with beating the most commonly reported method of abuse. Torture and abuse were common in prisons, pretrial facilities, and local police and security service precincts. Several cases of medical abuse were reported, including forced psychiatric treatment on political grounds. Defendants in trials often claimed that their confessions, on which the prosecution based its cases, were extracted by torture (see section 1.e.). A 2003 UN Special Rapporteur on Torture report concluded torture and abuse were systematic throughout the investigative process. During the year the government took no obvious steps to address the UN's conclusions. In 2005 government officials confirmed that prison regulations permitted beatings under the supervision of medical doctors, and prison authorities documented all such incidents in detail for prison records. Judges rarely pursued allegations of torture.

Authorities treated individuals suspected of extreme Islamist political sympathies, particularly alleged members of HT, more harshly than ordinary criminals. There were credible reports that investigators subjected pretrial detainees suspected to be HT members to particularly severe interrogation. After trial authorities reportedly used disciplinary and punitive measures, including torture, more often with prisoners convicted of extremism than with ordinary inmates. Local human rights workers reported that common criminals were often paid or otherwise induced by authorities to beat suspected extremists and others who opposed the government. As in previous years, there were credible reports that prison officials abused HT members to obtain letters of repentance, which are required for a prisoner to be eligible for amnesty. According to prisoners' relatives, amnestied prisoners, and human rights activists, inmates who refused to write letters disavowing their connection to HT were often beaten or sent into solitary confinement.

In January and February, authorities reportedly beat and otherwise mistreated suspected religious extremist Nozim Rakhmonov during pretrial interrogation while he was in the custody of the NSS (see sections 1.d. and 2.c.).

Between January 15 and March 15, following two months of incommunicado detention pending his trial on espionage charges, former Ministry of Defense official Erkin Musaev reportedly suffered torture during interrogation, including severe beatings to his head, chest, and feet (see section 1.e.).

In March eight defendants from the town of Yangiyul on trial for religious extremism in the Tashkent Province Criminal Court testified that investigators beat and kicked them during interrogation to coerce them into signing confessions (see section 2.c.). The judge in the case dismissed their allegations of torture, saying the defendants filed the complaints to evade responsibility for their crimes.

There were reports that interrogators subjected Azam Farmonov and Alisher Karamatov of the Human Rights Society of Uzbekistan (HRSU) to torture and abuse during pretrial detention before their June 15 conviction (see section 4), including dropping them onto concrete floors, forcing needles under their fingernails, suffocating them with gas masks, and burning their skin with lighted cigarettes.

On August 3 and August 11, courts in the Tashkent Province convicted 29 men of HT membership in two separate trials. Several defendants in one trial testified that they confessed their guilt only after interrogators had severely beaten them and threatened them with further torture (see section 1.e.).

There were no developments in the February 2005 case of two Sufi Muslims who claimed that authorities tortured them while in detention (see section 2.c.). In the February 2005 trial in Tashkent of six defendants charged with terrorism, one defendant testified that he had been beaten repeatedly while in custody (see section 1.e.). There were no developments in the June 2005 case in which Ministry of Internal Affairs (MVD) officers allegedly subjected Yakubjon Aliev to repeated, severe beatings during interrogation in connection with alleged religious extremism and anticonstitutional activity. There were also no further developments in the case of the September 2005 death in custody of Shavkat Madumarov, whose family alleged authorities tortured during interrogation and in prison.

During the year outside monitors were unable to gain access to visit the Tashkent MVD, where in 2004 eyewitnesses, family members, defense attorneys, and representatives of human rights groups claimed authorities frequently and systematically applied torture following the March and April 2004 terrorist attacks.

In 2005 inmates and a guard at one prison corroborated reports that prison guards systematically beat suspected HT members following the March and April 2004 terrorist attacks.

As in previous years, there were reports that police beat Jehovah's Witnesses. On April 12, local police in six cities carried out a coordinated raid on Jehovah's Witnesses congregations during worship services; several instances were reported in which police beat church members, in one case resulting in critical injury (see section 2.c.).

There were several confirmed instances of politically motivated medical abuse. As in past years, law enforcement authorities had local political and human rights activists committed to psychiatric institutions to stop their activities. Victims could request through legal counsel that their cases be reviewed by an expert medical board; however, in practice such bodies generally supported the decisions of law enforcement authorities. On March 17, police reportedly arrested human rights activist Shokhida Yuldosheva in Tashkent and transported her to a psychiatric institution in Karshi, where she was subjected to three weeks of forced treatment. On May 25, Karshi police reportedly arrested Yuldosheva again and committed her to a second round of psychiatric treatment. Yuldosheva was involved in monitoring trials of regime opponents, and human rights activists believed her detention was politically motivated. Shahnoza Sodikbekova, the daughter of Tashkent human rights activist Shoiri Sodikbekova, was reportedly confined on several occasions to psychiatric institutions in previous years. On May 16, a medical commission issued a finding, which human rights activists called politically motivated, recommending further psychiatric treatment for her. On July 7, Tashkent prison authorities committed human rights activist Mutabar Tojiboyeva to a prison psychiatric ward, where doctors reportedly administered oral medications. Four months earlier, Tojiboyeva had been convicted and sentenced to eight years' imprisonment on various criminal charges related to her human rights work. On September 12, authorities arrested journalist Jamshid Karimov, a nephew of President Islam Karimov, and forcibly committed him to a psychiatric institution near Samarkand. Authorities did not allow Karimov contact with his family for the first several weeks of his detention (see sections 1.d. and 2.a.).

There were several instances in which unidentified assailants attacked human rights activists, journalists, and persons planning or participating in public demonstrations (see sections 2.a., 2.b., and 4). On several occasions police forcibly dispersed public demonstrations, beating protesters and causing varying degrees of injuries. On May 12 and 13 in Tashkent, unidentified men forcibly dispersed informal memorial services for victims of the 2005 Andijon violence. On August 18, a group of approximately 20 local women attacked Jizzakh human rights activist Bakhtiyor Hamroyev in his home, causing moderate injuries.

Prison and Detention Center Conditions

Prison conditions remained poor and life threatening, and there continued to be reports of severe abuses in prisons. According to reports by human rights activists and relatives of prisoners, prison overcrowding remained a problem. Tuberculosis and hepatitis were endemic in the prisons, making even short periods of incarceration potentially life threatening. Prisoners often relied on visits of relatives for food and medicine, which were reportedly in short supply in several prisons. Human rights activists reported that political prisoners and those convicted of membership in banned religious extremist organizations were held in specially demarcated sections of prisons and subjected to harsher conditions and treatment than other prisoners.

As in past years, there were specific reports that inmates died of communicable diseases.

According to human rights activists, on May 1, Kakhramon Teshaboyev died in a Tashkent prison medical facility, four years after he was convicted and sentenced to 18 years in prison on charges of anticonstitutional activity and membership in a criminal organization. The reported cause of death was tuberculosis, and Teshaboyev had spent the six months before his death in the prison infirmary. Authorities reportedly delivered Teshaboyev's body to his family and pressured them to bury it as soon as possible.

There were reports of inmates working in harsh circumstances and in some cases being beaten in detention facilities.

During the year the MVD's Directorate of Prisons (GUIN) continued to operate a prison training center in Tashkent. The center, which was intended to eventually train all of the country's prison guards, utilized a curriculum that included human rights training and basic courses in psychology and prison management.

The government did not grant full access to outside monitors to prisons and detention centers. As in the previous year, independent human rights organizations did not visit detention facilities to monitor conditions. Throughout the year the International Committee of the Red Cross (ICRC) pursued negotiations with the government to secure access to all detained persons consistent with ICRC's usual practices.

Human Rights Watch (HRW) and other NGOs reported that government agents arrested and physically abused several Andijon residents who returned from Kyrgyzstan after having fled there in the wake of the May 2005 events in Andijon (see section 2.d.).

There were no further developments, and none were expected, in 2004 criminal proceedings against four police officers in Andijon accused of torturing suspects in a murder investigation.

d. Arbitrary Arrest or Detention

The constitution and law prohibit arbitrary arrest and detention; however, these remained problems.

Role of the Police and Security Apparatus

The MVD controls the police, which are responsible for law enforcement and maintenance of order. The NSS, headed by a chairman who is answerable directly to the president, deals with a broad range of national security questions, including corruption, organized crime, and narcotics. Corruption among law enforcement personnel remained a problem. Police routinely and arbitrarily detained citizens to extort bribes. Impunity remained a problem, and officials responsible for abuses were rarely punished. The MVD's main investigations directorate has procedures to investigate abuse internally and discipline officers accused of rights violations and has done so in several isolated cases. However, there is no independent body charged with investigating such allegations on a systematic basis. The MVD main investigations directorate incorporated human rights training into officers' career development.

Arrest and Detention

The law does not require warrants and grants wide discretion as to the proper basis for an arrest, but requires the arresting authority to forward a report justifying the arrest to a prosecutor within 24 hours of a person being taken into custody. The law also mandates that all detainees, whether they are considered suspects or accused, be questioned within 24 hours; however, suspects have the right to remain silent. There is no judicial determination of detention. Detention without formal charges is limited to 72 hours, although a prosecutor may extend it for an additional 7 days, at which time the person must either be charged or released. In practice authorities continued detaining suspects after the allowable period through various means, including filing false charges or detaining suspects as witnesses in other cases. Once charges are filed, a suspect may be held in pretrial detention at the prosecutor's discretion during an investigation. A prosecutor may release a prisoner on bond pending trial, although in practice authorities frequently ignored these legal protections. Those arrested and charged with a crime may be released until trial on the condition that they provide assurance that they will appear at trial. In such cases the accused is not required to post bail, but must register each day at a local police station.

A Supreme Court decree provides for a defendant's right to counsel from the moment of detention. In practice access to counsel often was denied or delayed. In several cases investigators pressured defendants to sign statements refusing the services of private attorneys whom family members had hired to defend them. In their place authorities appointed state attorneys, who did not provide effective defense.

In several cases during the year, persons were arrested and held incommunicado, without providing suspects with access to an attorney or communication with their families. In January and February, authorities continued to detain several Muslim men, including Sharafutdin Latipov, Nozim Rakhmonov, and Imam Ruhitdin Fakhritdinov, who had been arrested in Kazakhstan in November 2005 and delivered to Uzbek custody (see sections 2.c. and 2.d.). Some members of the group had been registered as asylum seekers with UNHCR. They were not given access to attorneys or family members until March.

After his January 15 arrest on espionage charges, former Ministry of Defense official Erkin Musaev was held in incommunicado detention for two months (see section 1.e.).

During the year police frequently and arbitrarily arrested or detained individuals for expressing views critical of the government. These included human rights activist Yodgor Turlibekov (see sections 1.e. and section 4), Utkir Pardayev (see section 4), Alisher Karamatov and Azam Farmonov (see sections 1.c. and section 4), and journalists Ulugbek Haydarov and Jamshid Karimov (see sections 1.c. and 2.a.). In 2005 those arrested on similar grounds included human rights activist Mutabar Tojiboyeva (see sections 1.c., 1.e., and 4) and political opposition figures Nodira Khidoyatova and Sanjar Umarov (see section 1.e.). In many such cases, authorities resorted to false charges of economic crimes such as extortion or tax evasion.

There were reports that police arrested persons on false charges as an intimidation tactic to prevent them or their family members from exposing corruption or interfering in local criminal activities.

Following the May 2005 events in Andijon, police detained hundreds of citizens on suspicion of involvement in the events. The national human rights NGO Ezgulik compiled a list of arrestees totaling 363 persons, in addition to those already convicted by the end of 2005. Dozens of human rights activists, journalists, and other Andijon residents who had spoken to the press or reported on the events were among those detained or arrested. On January 7, the Tashkent Province Criminal Court convicted one such arrestee, human rights activist Saidjahon Zaynabitdinov, of extremist activity and other offenses and sentenced him to seven years in prison.

On January 12, the Tashkent Province Criminal Court convicted Ferghana Valley-based human rights and political activists Dilmurod Muhiddinov, Musajon Bobojonov, Nurmuhhammad Azizov, Akbar Oripov, and Hamdam Sulaymonov on charges of conspiracy to overthrow the constitutional order, slander against the president, and preparing and distributing materials constituting a threat to public security. All five defendants had had copies of an opposition Birlik party statement that condemned the government's role in the Andijon events. The court sentenced Muhiddinov to five years' imprisonment but released Bobojonov, Azizov, Oripov, and Sulaymonov with suspended sentences.

On February 26, former Radio Free Europe/Radio Liberty (RFE/RL) journalist Nosir Zokir, who was arrested and convicted in August 2005 on charges of insulting an NSS officer, completed his six-month prison sentence and was released. Zokir had reported critically on the government's role in the Andijon events (see section 2.a.).

On March 6, the Tashkent Province Criminal Court sentenced human rights activist Mutabar Tojiboyeva to nine years' imprisonment on charges including extortion, fraud, tax evasion, forgery, and disseminating materials constituting a threat to public order. Tojiboyeva was arrested in October 2005, and human rights groups asserted the accusations were politically motivated (see section 1.e.).

On April 3, journalist Sobirjon Yakubov was released from prison after a year in detention during which he was never formally charged with a crime. Authorities had arrested Yakubov in April 2005 and accused him of links with banned Islamic groups and of anticonstitutional activity (see section 2.a.).

Authorities continued to arbitrarily arrest persons on charges of extremist sentiments or activities, or association with banned religious groups. Local human rights activists reported that police and security service officers, acting under pressure to break up HT cells, frequently detained family members and close associates of suspected members, even if there was no direct evidence of their involvement (see section 1.f.). Authorities made little distinction between actual members and those with marginal affiliation with the group, such as persons who had attended Koranic study sessions with the group.

As in previous years, there were reports that authorities arrested and prosecuted persons based on the possession of HT literature (see section 2.a.). Coerced confessions and testimony were commonplace. Even persons generally known to belong to HT stated that the cases against them were built not on actual evidence, which would have been abundantly available, but on planted material or false testimony.

Police harassed and sometimes arbitrarily detained members of the opposition Birlik, Free Farmers, and Erk parties (see section 3).

During the year pretrial detention typically ranged from one to three months. The number of such prisoners in pretrial detention was unknown.

In general prosecutors exercised near total discretion over most aspects of criminal procedure, including pretrial detention. Detainees had no access to a court to challenge the length or validity of pretrial detention. Even when no charges were filed, police and prosecutors sought to evade restrictions on the duration a person could be held without charges by holding persons as witnesses rather than as suspects.

Local police regularly employed house arrest without due process. In most cases police surrounded the homes of human rights activists and government critics to prevent them from participating in public demonstrations or other activities. Bakhtiyor Hamroyev of the HRSU and other human rights activists in Jizzakh Province reported that local police surrounded their homes on a regular basis to prevent their departure. Tashkent based human rights activist Surat Ikramov reported similar surveillance of his home to prevent him from monitoring trials of religious extremists in Tashkent. In several instances police detained Elena Uralyeva at her home to prevent her participation in protest actions.

Amnesty

On March 2, the government completed the three month amnesty declared in December 2005. Unlike in previous years, prisoners convicted of membership in banned organizations, including groups the government defined as extremist, were not eligible for amnesty. Media reported that approximately 28,000 persons were pardoned under the amnesty. As in previous amnesties, prisoners were reportedly forced to sign letters of repentance as a condition of release. There were allegations that authorities physically mistreated some prisoners who refused to sign such letters (see section 1.c.) and accounts of many inmates not being released despite having signed such letters. Despite established conditions allowing release, local prison authorities had considerable discretion in determining who was reviewed for amnesty, and, as in previous years, there

were reports of corruption. There were several reports of prisoners being charged with violating prison rules in order to lengthen their sentences; prisoners who habitually violated prison rules were specifically excluded from the December 2005 amnesty. In the past amnestied prisoners stated that government approved imams were sent to some prisons to make the final determination whether a prisoner had truly repented. This decision was reportedly frequently made in consultation with local mahalla (neighborhood) committees.

On November 30, on the occasion of the Constitution Day holiday, the senate announced the annual amnesty to be implemented over a three month period. The government announced that the amnesty would apply to convicts sentenced for up to 10 years' imprisonment for membership in banned organizations and for crimes against peace and security. Authorities released an undetermined number of prisoners under the new amnesty before year's end. Those released included human rights activist Yodgor Turlibekov who, at age 69, fell under the amnesty's provision for release of senior citizens.

The amnesty resolution, as in previous years, specifically excluded those who "systematically violate prison rules." Human rights activists reported that prison authorities cited selected prisoners for repeated violations of internal discipline specifically to render them ineligible for amnesty. Cases in which this tactic was suspected included those of human rights activist Mutabar Tojiboyeva, political opposition figure Sanjar Umarov, and Ikhtiyor Hamroyev, the imprisoned son of human rights activist Bakhtiyor Hamroyev.

e. Denial of Fair Public Trial

While the constitution provides for an independent judiciary, the judicial branch took its direction from the executive branch, particularly the general prosecutor's office, and exercised little independence in practice.

Under the law the president appoints all judges for five year terms and has the power of removal. Removal of supreme court judges must be confirmed by parliament, which is obedient to the president's wishes.

There are supreme criminal courts with jurisdiction over the Karakalpakstan Autonomous Republic. Decisions of district and provincial courts may be appealed to the next level within 10 days of a ruling. In addition a constitutional court reviews laws, decrees, and judicial decisions to ensure compliance with the constitution. Military courts handle all civil and criminal matters that occur within the military. The Supreme Court is a court of general jurisdiction which handles selected cases of national significance.

Trial Procedures

Most trials are officially open to the public, although access was often restricted in practice. Trials may be closed in exceptional cases, such as those involving state secrets, or to protect victims and witnesses. Courts often demanded that observers obtain written permission from the court chairman or from the supreme court. Permission was difficult and time consuming to obtain, with the result that international observers in many cases missed important portions of trial proceedings. Local and international observers, including foreign diplomats, were often barred entry into trials.

The government generally announced trials, including those of alleged religious extremists, only at the court in which the trial was to take place and only a day or two before the trial began. During the year various local courts held several trials of defendants involved in the May 2005 Andijon events. The government did not publicly announce the trials or the number or names of defendants, and courts declared most or all of the trials officially closed to outside observers on national security grounds.

Either workers collectives committees or neighborhood committees select three judge panels of one professional judge and two lay assessors that generally preside over trials. The lay judges rarely speak, and the professional judge usually defers to the recommendations of the prosecutor on legal and other matters. There are no jury trials.

Defendants have the right to attend court proceedings, confront witnesses, and present evidence. These rights were generally observed, including in high profile human rights and political cases. In all criminal cases which prosecutors brought to court, however, the verdict was guilty. Defendants have the right to hire an attorney, and the government provides legal counsel without charge when necessary. However, state appointed attorneys routinely acted in the interest of the government rather than of their clients. Authorities often violated the right to an attorney during pretrial detention, and judges in several cases denied defendants the right to an attorney of choice. There were several reports that investigators pressured defendants to refuse legal counsel. Defense counsel was often incompetent and, in most cases, the role of defense counsel was limited to submitting confessions and pleas for mercy. Several private law firms provided pro bono defense counsel, some financed through international contributions, although resources were limited.

Government prosecutors order arrests, direct investigations, prepare criminal cases, and recommend sentences. Defendants do not enjoy a presumption of innocence. If a judge's sentence does not correspond with the prosecutor's recommendation, the prosecutor has a right to appeal the sentence to a higher court. Verdicts are often based solely on confessions and witness testimony that were often reportedly extracted through torture or other means of coercion, rather than evidence. On the rare occasions when a guilty verdict is not pronounced, the judge seldom acquits the defendant; rather, the case is sent back for further investigation. Legal protections against double jeopardy do not apply in practice.

The law provides a right of appeal to defendants. Appeals did not result in convictions being reversed, but in several cases resulted in a reduced sentence.

Defense attorneys had limited access in some cases to government held evidence relevant to their clients' cases. However, in most cases a prosecution was based solely upon defendants' confessions or incriminating testimony from state witnesses. Defendants often claimed that the confessions on which the prosecution based its cases were extracted by torture (see section 1.c.). In 2005 the BBC quoted a former interior ministry official who claimed that investigators often used beatings, psychotropic drugs, or threats against family members to obtain confessions from defendants. However, the Interior Ministry strongly denied the allegation. In many cases, particularly those involving suspected HT members, when the prosecution failed to produce confessions, it relied solely on witness testimony, which was reportedly often also coerced. Lawyers may, and occasionally did, call on judges to reject confessions and to investigate claims of torture. Judges routinely ignored such claims or dismissed them as groundless.

On January 7, the Tashkent Province Criminal Court convicted human rights activist Saidjahon Zaynabidinov of extremist activity and other offenses in connection with the May 2005 events in Andijon and sentenced him to seven years in prison. Authorities held Zaynabidinov in pretrial detention for seven months after his June 2005 arrest until his trial and reportedly denied him access to his attorney of choice. The court barred all outside observers from the trial. The government denied or failed to respond to several requests from foreign diplomatic missions for access to Zaynabidinov.

On March 6, Mutabar Tojiboyeva, head of the Ardent Hearts Club, a human rights organization, was convicted of slander and extortion and forced to undergo 10 days of psychiatric treatment in July.

On August 3 and August 11, courts in the Tashkent Province convicted a total of 29 men of HT membership in two separate trials and sentenced them to between one and 13 years in prison (see section 2.c.). Several defendants in one of the trials testified that their confessions had been coerced through severe beatings (see section 1.c.). According to independent trial monitors, most evidence in the trial consisted of defendants' confessions and incriminating testimony from "witnesses" who were likely also coerced. Most defendants in the cases had been previously convicted of the same crimes and had served time in prison. At least five of the defendants were suffering from tuberculosis at the time of the trial and were coughing blood during court proceedings. In the latter of the two trials, the court limited access to only immediate family members and excluded all journalists and other observers.

On September 6, Ruhitdin Fakhrutdinov, a former imam of a Tashkent mosque, was sentenced to 17 years in prison. He was accused of being an extremist and charged with crimes in connection with a 1999 car bombing in Tashkent. He had been kidnapped from a Kazakh border town and delivered to Uzbek authorities. Court guards barred trial monitors from the proceedings.

Investigators reportedly pressured poet-songwriter Dadakhon Khasanov to dismiss his attorney, and the court admitted no observers or other defense attorney into the courtroom during the September proceedings against him. The court gave Khasanov a suspended three year sentence (see section 2.a.).

In October the Jizzakh City Criminal Court barred outside observers from the two-day proceedings against journalist Ulugbek Haydarov (see sections 2.a. and 4). On November 7, an appeals court commuted his sentence and released him from custody in response to an appeal by a foreign government.

Political Prisoners and Detainees

It was impossible to estimate the exact number of political prisoners or detainees. In 2004 there were an estimated 5,000 to 5,500 political prisoners, including alleged HT members, as well as those who were committed to psychiatric institutions as a form of confinement (see section 1.c.). It was believed that the number of political prisoners continued to rise during the year as the number of new prisoners sentenced likely exceeded the number of prisoners who were amnestied or completed their sentences. Media reported that approximately 28,000 persons were pardoned under an annual amnesty from December 2005 to March 2, but the government provided no information on the number of political prisoners amnestied (see section 1.d.). Most persons convicted of political crimes were charged with the crime for which they were arrested, for example anticonstitutional activity, involvement in illegal organizations such as prohibited religious or political groups, or preparation or distribution of material that threatened public security. However, several human rights activists and journalists were convicted on politically motivated charges of other crimes, including extortion and hooliganism. Several human rights activists, journalists, and Andijon residents who had spoken about the May 2005 events were convicted and imprisoned on charges related to the events. The government did not allow any independent monitoring groups to visit political prisoners or detainees during the year (see section 1.c.).

On January 7, the Tashkent Province Criminal Court convicted human rights activist Saidjahon Zaynabitdinov of extremist activity in connection with the 2005 Andijon events and sentenced him to seven years' imprisonment. On January 12, the same court convicted Ferghana Valley-based human rights and political activists Dilmurod Muhitdinov, Musajon Bobojonov, Nurmuhammad Azizov, Akbarali Oripov, and Hamdam Sulaymonov on charges of conspiracy to overthrow the constitutional order, slander against the president, and preparing and distributing materials constituting a threat to public security. The court sentenced Muhitdinov, also of the NGO Ezgulik, to five years' imprisonment but released Bobojonov, Azizov, Oripov, and Sulaymonov from custody with suspended sentences. Human rights activists and outside observers generally considered these cases and that of Zaynabitdinov to be politically motivated.

On January 15, authorities arrested former ministry of defense official Erkin Musaev and held him in incommunicado detention for two months. On June 13, a closed military court convicted Musaev of espionage and sentenced him to 15 years' imprisonment, based on the allegation that he had passed state secrets to foreign diplomatic missions. Subsequently, on July 14, the Tashkent City Criminal Court convicted Musaev of fraud in connection with his work as a project manager for the UN Development Program (UNDP) in Tashkent. The second conviction rendered Musaev ineligible for inclusion in the annual amnesty and added one more year to his prison sentence. Relatives and outside observers maintained that the charges against Musaev were false and politically motivated. Musaev reported suffering torture in detention during his interrogation, including severe beatings to his head, chest, and feet (see section 1.c.).

On February 26, former RFE/RL journalist Nosir Zokir, who was arrested and convicted in August 2005 on charges of insulting an NSS officer, completed his six-month prison sentence and was released. Zokir had reported critically on the government's role in the Andijon events.

On March 1, the Tashkent City Criminal Court convicted Nodira Khidoyatova, cofounder of the political opposition Sunshine Coalition, on charges of tax evasion and illegal commodities trading and sentenced her to 10 years' imprisonment. Khidoyatova was originally arrested in December 2005. International observers, human rights activists, and Khidoyatova's family members maintained that the charges were politically motivated. On May 23, a Tashkent appeals court commuted Khidoyatova's sentence and released her. The appeals judge acknowledged in court that Khidoyatova's payment of substantial "compensation" to the state played a role in her release.

On March 6, the Tashkent City Criminal Court convicted Sunshine Coalition cofounder Sanjar Umarov on economic charges similar to those leveled against Nodira Khidoyatova, and sentenced him to 14½ years' imprisonment. Umarov had been arrested in October 2005. The court automatically reduced the sentence to 10 years and 10 months under the December 2005 amnesty resolution. Umarov was also ordered to pay a total of \$8.3 million (10.4 billion soum; this fine was levied against Umarov in a combination of dollars and soum) in damages to the state. On April 13, an appeals court reduced Umarov's sentence further to 7 years and 8 months on humanitarian grounds. Umarov's family, attorney, and human rights NGO observers criticized the trial as politically motivated.

On March 6, the Tashkent Province Criminal Court sentenced human rights activist Mutabar Tojiboyeva to nine years' imprisonment on charges including extortion, fraud, tax evasion, forgery, and disseminating materials constituting a threat to public order. Tojiboyeva was arrested in October 2005, and human rights groups asserted the accusations were politically motivated (see section 1.c.).

In April the Jizzakh Criminal Court convicted Dildora Mukhtarova on the charge of being accessory to a murder and sentenced her to 17 years' imprisonment. Mukhtarova was arrested in December 2005 on charges that human rights activists believed were politically motivated.

On June 16, police arrested human rights activist Yodgor Turlibekov, a resident of Karshi, after he distributed leaflets critical of government policies. Police held him in incommunicado detention for several weeks before giving him access to an attorney. Turlibekov was charged with "encroachment upon the President of Uzbekistan," a charge human rights activists claimed was politically motivated (see sections 1.e.). On October 9, the Karshi Criminal Court sentenced Turlibekov to 3½ years' imprisonment after a trial in which the court reportedly did not allow Turlibekov his choice of legal counsel. On December 24, authorities released Turlibekov from prison under an annual amnesty resolution (see sections 1.d.).

There were several reports that prison officials accused certain political prisoners of repeatedly violating prison discipline, thereby extending inmates' sentences or making them ineligible for amnesty. In particular such tactics were reported in the cases of human rights activist Mutabar Tojiboyeva, political opposition figure Sanjar Umarov, and Ikhtiyor Hamroyev, the son of human rights activist Bakhtiyor Hamroyev. Allegations of prison disciplinary violations were not subject to review by an independent judiciary, nor were they upheld by hearings that were open to outside observers.

Civil courts operate on the city or district level, as well as the interdistrict and provincial levels. Criminal courts operate on the city or district level. There are also supreme civil courts with jurisdiction over the Karakalpakstan Autonomous Republic.

Economic courts with jurisdiction over the individual provinces, the City of Tashkent, and the Karakalpakstan Autonomous Republic handle commercial disputes between legal entities. Decisions of these courts may be appealed to the Supreme Economic Court.

Civil and Judicial Procedures and Remedies

Although the constitution provides for it, the judiciary is not independent or impartial in civil matters. Citizens may file suit in civil courts, if appropriate, on cases of alleged human rights violations. There were reported cases in which courts decided in favor of plaintiffs in such cases. However, there were also many reports that decisions in civil court cases were influenced by bribes to judges.

f. Arbitrary Interference with Privacy, Family, Home, or Correspondence

The constitution and law prohibit such action; however, in practice authorities did not respect these prohibitions. The law requires a search warrant for electronic surveillance by the prosecutor, but there is no provision for a judicial review of such warrants. Citizens generally assumed that security agencies routinely monitored telephone calls and employed surveillance and wiretaps of persons involved in opposition political activities.

There were numerous reports during the year of police and other security forces entering homes of human rights activists and religious figures without authorization of an independent judiciary. Members of Protestant churches who held worship services in private homes reported that, on several occasions, armed security officers raided worship services and detained church members on suspicion of illegal religious activity (see section 2.c.). On May 25, in the process of arresting human rights activist Shokhida Yuldosheva in Tashkent, police reportedly entered the home of fellow activist Elena Uralyeva without judicial authorization (see section 1.c.). On August 18, a group of 20 local women forcibly entered the Jizzakh home of human rights activist Bakhtiyor Hamroyev and severely beat him (see section 4). Police reportedly appeared on the scene, but failed to render assistance; human rights activists claimed that the attack was carried out in collaboration with police.

The government continued to use an estimated 12,000 local neighborhood committees as a source of information on potential extremists. Committees served varied legitimate social functions, but also functioned as a link between local society, and government and law enforcement. Neighborhood committees' influence varied widely, with committees in rural areas tending to be much more influential than those in cities. Each neighborhood committee assigned a posbon (neighborhood guardian) whose job it was to ensure public order and maintain a proper moral climate in the neighborhood. In practice this meant preventing young persons in the neighborhood from joining extremist Islamic groups. According to a 2003 HRW report, the committees kept extensive files on families and collected information on individual religious practices. During the year there were several reports that neighborhood committees acted on orders of the NSS to monitor individual religious practices and specifically discouraged residents from associating with Protestant Christian churches (see section 2.c.). Neighborhood committees also frequently identified for police those residents who appeared suspicious and, working with local MVD and NSS representatives, reportedly paid particular attention to recently amnestied prisoners and the families of individuals jailed for alleged extremism.

Unlike in previous years, there were no reports of local authorities or neighborhood committees evicting local residents from their homes citing suspected illegal activity; however, there were several reports from members of Protestant churches that neighborhood committees threatened eviction based upon their Christian affiliation (see section 2.c.)

Authorities frequently detained and mistreated family members of persons wanted or jailed for Islamic extremist activities, even if there was limited evidence of their involvement (see section 1.d.). There were numerous credible reports that police, employers, and neighborhood committees also harassed and arrested family members of human rights activists (see sections 1.d. and 2.b.). There were numerous reports that officials harassed relatives of residents who fled to Kyrgyzstan after the Andijon unrest in May 2005 to coerce them to persuade their family members to return to the country.

Although there were no new cases this year, in 2005 independent press reports, a national human rights NGO, and at least one healthcare worker reported that hospitals, primarily in the Ferghana Valley, performed involuntary hysterectomies on women shortly after they had given birth. While authorities claimed that hysterectomies were only performed in cases of medical need, NGO and other sources reported several cases of medically unnecessary procedures. In other cases it was reported that doctors implanted contraceptive devices in women who had recently given birth, without their prior knowledge or consent.

Section 2 Respect for Civil Liberties, Including:

a. Freedom of Speech and Press

The constitution and law provide for freedom of speech and the press; however, the government generally did not respect these rights in practice.

The law limits criticism of the president, and public insult to the president is a crime punishable by up to five years in prison. Citizens did not criticize the president or the government on television or in the press, although they continued to do so occasionally in private. The law also specifically prohibits articles that incite religious confrontation and ethnic discord or advocate subverting or overthrowing the constitutional order (see section 2.b.). On September 8, a Tashkent court convicted poet songwriter Dadakhon Khasanov of creating and distributing materials constituting a threat to public order based on a song Khasanov wrote criticizing government actions during the May 2005 Andijon events. The court gave Khasanov a suspended three year sentence.

The government continued to characterize the distribution of pamphlets by HT members as incitement for political and terrorist purposes; HT is a banned organization. During the year police reportedly arrested several people for possessing HT literature.

The government tightly controlled information. The Uzbekistan News Agency cooperated closely with presidential staff to prepare and distribute all officially sanctioned news and information. The government's press and information agency is responsible for monitoring all media. The Cabinet of Ministers owned and controlled three of the country's most influential national daily newspapers, Pravda Vostoka (Russian language), Halq So'zi (Uzbek language), and Narodnoe Slovo (Russian language). The government, government controlled political parties or social movements, and the Tashkent municipal government owned or controlled several other daily and weekly publications. The government also increasingly published news stories on official Internet sites including UzA.uz, operated by the National News Agency of Uzbekistan, and Jahon.mfa.uz, operated by the Ministry of Foreign Affairs. A few Web sites, most notably Press-uz.info, Gazeta.uz, and C-Asia.org, purport to be independent, yet invariably their reporting reflects the government's point of view.

There were a few private printing houses, located mostly in provincial cities and printing local newspapers with limited circulation. Government owned printing houses generally printed all newspapers. Private citizens and journalist collectives may not establish newspapers unless they meet the media law's standards for establishing a "mass media agency," including naming a board of directors acceptable to the government. The government allowed a small number of private newspapers containing advertising, horoscopes, and similar features, but no substantive news or editorial content. Three private national Russian language newspapers Novosti Uzbekistana, Noviy Vek, and Biznes Vestnik Vostoka carried news and editorials favorable to the government, as did two Uzbek language newspapers, Hurriyat (owned by the Journalists' Association) and Mohiyat (owned by Turkiston Press, a nongovernmental information agency which was loyal to the state). The government did not allow the general distribution of foreign newspapers and publications. However, two or three Russian newspapers and a variety of Russian tabloids and lifestyle publications were available, and a very modest selection of foreign periodicals was available in major hotels and at other locations in Tashkent.

In June authorities temporarily suspended printing of the Russian newspaper Trud after it published an article about the financial activities of the children of senior government officials, including President Karimov's daughter. The printing house that printed the paper attributed the interruption to technical difficulties.

The four state run channels, all fully supporting the government, dominated television broadcasting nationwide. There were 24 privately owned regional television stations and 14 privately owned radio stations. The government tightly controlled both broadcast and print media. Journalists and senior editorial staff in state media organizations reported there were officials at the national television stations and newspapers whose responsibilities included actual black pen censorship. Nevertheless, there were also reports that regional television media outlets were able to broadcast some moderately critical stories on local issues.

In November 2005 the president signed a decree providing for further consolidation of the management of broadcast mass media under government control, with the stated goal of promoting patriotism. The government implemented the decree during the year. As one result of the consolidation, the government transferred control over several state-owned radio stations

to the directors of the powerful state television stations, who exercised control over the radio stations through the National Television and Radio Company.

The government continued to refuse to allow RFE/RL, the Voice of America (VOA), and BBC World Service to broadcast from within the country.

The May 2005 events in Andijon sparked a wave of government harassment against journalists, which continued during the year. Both print and broadcast journalists were subject to arrest, harassment, intimidation, and violence by police and security services, as well as bureaucratic restrictions on their activity.

In late March authorities refused an exit visa to journalist Alisher Taksanov, who was seeking to travel to attend a conference abroad (see section 2.d.). Taksanov, an antilandmine activist, had written articles critical of the government, particularly on the subject of landmines.

On April 3, journalist Sobirjon Yakubov, who formerly worked for the newspaper Hurriyat, was released from prison and reinstated at Hurriyat after one year in detention during which he was never formally charged with a crime. In April 2005 authorities arrested Yakubov and accused him of links with banned Islamic groups and attempting to undermine the constitutional order. Yakubov had written articles advocating democratic reforms.

On July 12, police reportedly entered the Namangan home of former RFE/RL journalist Nosir Zokir and seized many of his possessions. Zokir, who was arrested and convicted in August 2005 on charges of insulting an NSS officer, completed his six month prison sentence and was released in February (see section 1.d.). Prior to his conviction, Zokir had conducted an interview with a poet who was critical of the government. The officers conducting the July raid reportedly claimed they were seizing the property in lieu of a fine against Zokir's son, who had been accused of illegally crossing the border into Kyrgyzstan.

On September 12, authorities arrested journalist Jamshid Karimov, President Karimov's nephew, in Jizzakh and committed him to a psychiatric institution near Samarkand. No criminal charges were announced against Karimov. Human rights activists claimed the arrest was politically motivated (see sections 1.c. and 1.e.). On September 13 an unknown assailant stabbed and seriously injured Saidburkhon Kadyrov, editor in chief of the newspaper Bukhara Yoshlar (Bukhara Youth) and a member of the unregistered opposition political party Birlik. On October 5, after a two day trial, the Jizzakh City Criminal Court convicted journalist Ulugbek Haydarov of extortion and sentenced him to six years' imprisonment (see section 1.d.). Haydarov had reported extensively on official corruption in Jizzakh Province. Human rights activists claimed the charges were politically motivated and based upon police entrapment. On November 7, an appeals court commuted his sentence and released him (see section 1.d.).

There were several reports that journalists were fired from state run media outlets in retaliation for their contacts with foreign diplomats. State controlled media organizations fired some journalists for attending discussions or participating in other programs sponsored by foreign embassies. Others were placed on leave without pay or had their air time reduced.

There were also reports that authorities revoked journalists' accreditations in retaliation for their reporting. On March 15, authorities revoked the accreditation of Deutsche Welle journalist Obid Shabanov because of his critical reporting on the issue of labor migrants.

A government agency, the Interagency Coordination Committee (MKK), issues the required broadcast and mass media licenses to approved media outlets and could revoke licenses and close media outlets without a court judgment. The Center for Electromagnetic Compatibility issues frequency licenses. During the year MKK threatened to shut down some privately owned regional television stations on technical grounds to enforce control by the National Association of Electronic Mass Media (NAESMI), which lacks direct licensing authority.

The NAESMI reportedly used its directors' close relations with the government to coerce local television stations to join the association and restrict the content of their programming. Stations that resisted joining NAESMI were subjected to tax inspections and, in some cases, lost their broadcast licenses. In many cases NAESMI required affiliated local stations to broadcast prescribed programming instead of locally produced content, thus limiting the freedom of broadcasters.

Government security services and other offices regularly gave publishers articles and letters to publish under fictitious bylines, as well as explicit instructions about the types of stories permitted for publication. Often there was little distinction between the editorial content of a government or privately owned newspaper. There was very little, if any, independent investigative reporting. During the year self censorship remained standard practice. The number of critical newspaper articles remained very low and their scope extremely narrow. During the year the legal affairs newspaper Advokat Press remained closed pending receipt of a new license. In December 2005 the Uzbekistan Press and Information Agency had ordered the newspaper to close after it published a series of articles criticizing government officials for violations of the law.

The law holds journalists, as well as editors and publishers, responsible for the accuracy of news stories that appear in their publications, exposing them to risk of criminal prosecution for their reporting. The law establishes the right of government accepted newspaper boards of directors to influence the editorial content of media reports. These legal provisions establish mechanisms by which the government can indirectly influence media content and further encourage members of the media to practice self censorship. Television and radio stations practiced self censorship and, therefore, carried critical reporting only occasionally.

In December 2005 amendments to the criminal and administrative liability codes significantly increased fines for libel and defamation. In general the government used charges of libel, slander, and defamation to punish journalists, human rights activists, and others who criticized the president or government. On March 7, the Cabinet of Ministers issued a resolution that prohibits journalists from working without accreditation, as well as working for unaccredited media outlets.

Internet Freedom

The government allowed limited access to the Internet, although Internet service providers, at the government's request, routinely blocked access to Web sites the government considered objectionable, including several news Web sites and sites operated by opposition political parties.

On October 19, the Cabinet of Ministers passed a decree requiring that all Web sites seeking a ".uz" domain name register with the state Agency for Press and Information. The decree generally affected only government-owned or controlled Web sites. Opposition Web sites and those operated by international NGOs or media outlets tended to have domain names registered outside the country.

On May 12, the government denied an exit visa to Alo Khojayev, editor in chief of the news Web site Tribune.uz, effectively barring him from traveling outside the country (see section 2.d.). In a refusal letter, visa authorities stated only that his travel abroad was "not appropriate." Khojayev had drawn official disapproval for his critical attitude and critical articles toward the government.

Academic Freedom and Cultural Events

The government limited academic freedom. Authorities often required department head approval for university lectures or lecture notes. Although authorities implemented the requirement inconsistently, university professors generally practiced self censorship. Numerous university students reported that universities taught mandatory courses on "Karimov studies" devoted to books and speeches by the president, and that missing any of these seminars constituted grounds for expulsion. An August 2005 decree of the Ministry of Higher Education effectively prohibited any cooperation between higher educational institutions and foreign organizations without explicit prior approval by the government. During the year the government broke up a conference of teachers and pressured teachers and students not to participate in conferences sponsored by diplomatic missions or academic exchange programs. There were many reported threats by school officials to expel students

who participated in international exchange programs. One student expelled from university claimed that the expulsion was in retaliation for his participation in an international exchange program. Others who participated in university-level exchange programs reported losing their jobs at Uzbek universities upon their return to their country. There were several reports that government officials pressured local nationals to prevent them from participating in cultural events sponsored by foreign diplomatic missions.

b. Freedom of Peaceful Assembly and Association Freedom of Assembly

The constitution and law provide for freedom of assembly, but in practice the government often restricted this right and authorities also have the right to suspend or prohibit rallies, meetings, and demonstrations on security grounds. The government did not routinely grant the required permits for demonstrations. Under December 2005 amendments to the criminal and administrative liability codes, citizens are liable to large fines for facilitating unsanctioned rallies, meetings, or demonstrations by providing space or other facilities or materials. The amendments also significantly increased fines for violations of procedures concerning the organizing of meetings, rallies, and demonstrations.

In several cases authorities used a variety of tactics to prevent or stop peaceful protests. On May 12, unidentified men approached a group of approximately 10 human rights activists who were holding protest placards at a memorial in Tashkent on the anniversary of the May 2005 violence in Andijon, seized the placards, and ran away. On May 13, when the group gathered again at the same memorial to carry out a similar demonstration, unidentified men again seized their placards. The activists then moved to a foreign embassy, where a local deputy chief of police personally attempted to disrupt the demonstration. Unidentified men later apprehended the demonstrators as they rode in a taxi and detained them on a roadside. Also on May 13, students at two Tashkent universities reported that university officials ordered them to appear at the schools to fill out questionnaires or face expulsion. The students believed the action was intended to prevent possible protests on the Andijon anniversary.

In several other cases, however, human rights activists reported that local residents, including in Andijon, protested economic conditions, apparently without prior permission of the authorities, but did not face police pressure.

In May 2005 the government used deadly force to suppress a large demonstration in the city of Andijon. Demonstrations were sparked by the trial of 23 businessmen accused of Islamic extremism. Armed individuals stormed the city prison and freed inmates, occupied government buildings, and took hostages. Several thousand Andijon citizens assembled in a city square the following day to peacefully protest frustration with government abuse of power and social grievances. Eyewitnesses reported that government forces approached the square and fired into the crowd without warning. The government claimed that armed rebels fired first on security forces, that security forces fired only on armed rebels, and that 187 persons were killed, while eyewitnesses and human rights groups estimated several hundred were killed. The government continued to refuse international calls for an independent investigation of the events; however, officials discussed their investigation techniques and results with diplomats and other international representatives.

Freedom of Association

While the law provides for freedom of association, the government continued to restrict this right in practice. The government sought to control completely all NGO activity. The law broadly limits the types of groups that may form and requires that all organizations be formally registered with the government. The law allows for a six month grace period for new organizations to operate while awaiting registration, during which time they are officially classified as "initiative groups." Registration of NGOs and other public associations was difficult and time consuming, with many opportunities for government obstruction. Nonpolitical associations and social organizations usually were allowed to register, although complicated rules and a cumbersome government bureaucracy made the process difficult. Most local NGOs also were compelled to register with a government controlled NGO association, whose purpose was to control all funding and NGO activities.

December 2005 amendments to the administrative liability code impose large fines for violations of procedures governing NGO activity, as well as for "involving others" in illegal NGOs. The law does not specify whether "illegal NGOs" are those that were forcibly suspended or closed, or those that were simply unregistered. The amendments also increased penalties against international NGOs for engaging in political activities, activities inconsistent with their charters, or activities not approved in advance by the government. The February 2004 banking decree, although ostensibly designed to combat money laundering, was selectively enforced to prevent both registered and unregistered NGOs involved in human rights or political work from receiving outside funding.

The law allows independent political parties, but also gives the Ministry of Justice (MOJ) broad powers to interfere with parties and to withhold financial and legal support to those opposed to the government. Registered parties received funding from the government. All five registered political parties were controlled by the government; no opposition parties were registered at year's end (see section 3).

The law criminalizes membership in organizations the government deems extremist. Under the law the extremist Islamist political organization HT was banned. HT promoted hate and praised acts of terrorism, although it maintained that it was committed to nonviolence. The party's virulently anti Semitic and anti Western literature called for the overthrow of secular governments, including those in Central Asia, to be replaced with a worldwide Islamic government called the caliphate.

The government has pressured and prosecuted members of the Islamic group Akromiya (Akromiylar) since 1997. Religious experts claimed that Akromiya is an informal association that promotes business along Islamic religious principles, while the government claimed that the group is a branch of HT and that it attempted, together with the Islamic Movement of Uzbekistan, to overthrow the government through armed rebellion in May 2005 in Andijon (see section 2.c.).

In June the MOJ ordered two prominent human rights NGOs to close (see section 4). In 2005 nearly 200 NGOs were closed due to pressure by the government.

During the year the Women's Committee, a government controlled organization, monitored and often hampered the activities of women's NGOs, particularly those promoting women's political participation.

During the year the government also forced many international NGOs to close, citing alleged violations of the law. The closures were part of government efforts to minimize the presence of Western organizations, based on the stated belief that their programs aimed to forcibly introduce democracy and subvert the existing regime. The government required all international NGOs to register with the MOJ. During the year the ministry continued conducting a series of exhaustive audits of international NGOs, which also suffered visa, accreditation, and automobile registration problems. During the audits, MOJ officials repeatedly referred to an unpublished 2003 decree that outlined new registration requirements for international NGOs. The government used the decree as a basis for requiring prior government approval for a broad range of program activities and detailed reports on activities, program participants, and finances. NGOs' activities were also restricted by a 2004 banking decree that requires a government commission to review all foreign funding before disbursement to local NGOs. Although the measure was ostensibly to fight money laundering, the commission used political criteria to determine which programs received funds.

On January 11, the Tashkent City Civil Court ordered the human rights NGO Freedom House to suspend its operations for six months based on the charge that the organization had provided Internet access without a license. On February 7, an appeals court rejected the organization's appeal of the suspension order. Following an unsuccessful appeal of the suspension and a criminal investigation of the organization's staff, the civil court ordered Freedom House to close on March 6. In 2005 the government had subjected Freedom House and its employees to frequent harassment in 2005. Official television stations publicly accused Freedom House of supporting suspected terrorists in documentaries on the May 2005 violence in Andijon.

On March 6, the Tashkent office of the Eurasia Foundation voluntarily suspended its activities after the MOJ filed a request for its suspension with the Tashkent Civil Court. The request alleged that the foundation had made grants to local NGOs and conducted seminars without prior government permission, among other technical violations.

On April 19, the country director of the International Research and Exchanges Board (IREX) departed the country, and the representative office subsequently liquidated its operations, following its unsuccessful appeal of a December 2005 court order to close and a criminal investigation of several of its local staff members. The government based IREX's expulsion primarily on the charge that the organization had provided Internet access without a license.

On April 27, the Tashkent Civil Court ordered the Tashkent office of the American Bar Association's Central European and Eurasian Law Initiative (ABA/CEELI) to close. According to the government controlled press, the decision was based on activities that ran counter to ABA/CEELI's charter, including supporting and providing legal assistance to local NGOs. On May 23, the court denied ABA/CEELI's appeal of the ruling.

On May 4, the court ordered the closure of the NGO Counterpart International, ruling that the organization had violated its charter.

On June 1, the court ordered the closure of the American Councils for International Education (ACTR/ACCELS), a student exchange organization. Government controlled press agencies attributed the closure to the allegation that ACCELS had sent over 100 high school students abroad without informing authorities. The city prosecutor subsequently initiated a criminal investigation of its staff, but closed it without any findings because the organization's former office director died.

On June 15, the court ordered the closure of the Tashkent office of Central Asian Free Exchange (CAFE), a faith based NGO engaged in small scale development and community education projects. Authorities accused the organization's employees of proselytizing illegally, providing Internet service without a license, and violating other regulations.

In late June the court ordered the NGO Global Involvement Through Education to close, accusing it of activities that violated the organization's charter.

Local experts estimated that by year's end government pressure had forced between two-thirds and three-fourths of local NGOs to cease operations.

On July 12, the Tashkent Civil Court ordered the closure of the NGO Urban Institute, which had worked to help develop resident managed condominium associations. The court accused the organization of "discussing the socioeconomic, social, and political situation in the country" without government authorization during its training seminars.

On July 21, the court ordered the closure of Winrock International, an NGO that had assisted farmers with irrigation issues. The court based the liquidation order on printed and recorded materials on women's legal rights, which, according to the court, contained "unapproved religious content." The materials in question had been released under a 2003 program, since discontinued. On August 18, the court upheld the closure order on appeal. The criminal investigation was ongoing at year's end.

On August 23, the Tashkent Civil Court ordered the closure of the NGO Crosslink Development International, ruling the organization did not report on its programs, carried out unlicensed educational activities, and granted loans without banking institution involvement, according to a quoted court official. Press articles quoted government officials accusing Crosslink employees of illegally providing financial support to the Pentecostal Church (see section 2.c.).

In late August the MOJ refused to accredit 24 expatriate staff working for the NGO Partnerships in Academics and Development (PAD) and informed PAD that its microfinance program was illegal, as the government decree under which it had been working had expired. The government subsequently ordered PAD's closure, accusing it of illegal missionary activity.

On October 2, the state tax authority sued Mercy Corps, alleging it had concealed over \$497,000 (621 million soum) in income to avoid taxes. The Tashkent Economic Court in the first instance and a later appeals court both rejected the tax authority's claim. However, the government controlled press accused Mercy Corps of espionage and subversive activity in

connection with a civil society development program coordinated by the NGO in the Ferghana Valley. In December the government froze the organization's local bank account and declared it liable for approximately \$566,000 (708 million soum) in taxes.

On November 6, the MOJ notified the economic policy research organization Bearing Point, LLC, that it had requested the organization's liquidation. The government alleged that Bearing Point had violated the law by training journalists in economic analysis and giving economic advice to the government, among other offenses. On November 8, Bearing Point declared its intention to liquidate voluntarily, whereupon the Tashkent Civil Court suspended action against the organization.

On November 8, the Tashkent Civil Court dismissed a suit filed by the MOJ requesting the closure of the NGO Joint Development Associates (JDA), when the organization declared its intention to voluntarily liquidate. The government had accused the organization of illegal missionary activity. In December the government froze JDA's local bank account and declared it liable for over \$67,000 (\$86 million soum) in penalties for alleged violations of the tax code.

On November 30, the Tashkent Civil Court ordered the NGO Cooperative Housing Foundation International to liquidate, based on allegations of tax evasion, failing to provide the government with sufficient information about its activities, and maintaining unregistered branch offices outside of Tashkent. An appeals court subsequently upheld the ruling.

In December the government froze the local bank accounts of the NGOs Agricultural Cooperative Development International/Volunteers in Overseas Cooperative Assistance (ACDI/VOCA) and the Foundation for International Community Assistance (FINCA), in addition to those of JDA and Mercy Corps, and declared the organizations liable for large penalties for alleged violations of the tax code.

During the year the government forced the closure of a Hungarian NGO, the Ecumenical Charity Service, as well as the Participation, Education, and Knowledge Strengthening (PEAKS) Program, an education development program managed by the Academy for Educational Development. The government also ordered the closure of two Korean organizations and one Swiss NGO based on charges of illegal missionary activity, and authorities detained two employees of the Swiss NGO on allegations of illegal activity. The government also warned a British and Dutch NGO about alleged illegal activities and opened an investigation of the Calcutta based Missionaries of Charity. The government followed a policy of auditing all international NGOs. Generally following an audit, the MOJ sent each audited NGO a letter outlining the violations discovered during the process, with a 30-day time limit to resolve the violations.

The government insisted that NGOs coordinate their training sessions or seminars with government authorities. NGO managers believed this amounted to a requirement for prior official permission from the government for all NGO program activities. NGOs under the auspices of the government controlled Institute for the Study of Civil Society were generally successful in conducting events.

c. Freedom of Religion

While the constitution and law provide for freedom of religion and separation of church and state, in practice the government restricted religious activity. The government supported the country's Muslim heritage by funding an Islamic university, supporting preservation of historic Islamic sites, and providing logistical support for citizens' participation in the hajj. The government sought to promote what it considered a moderate version of Islam through the control and financing of the Muslim Board of Uzbekistan (the Muftiate), which in turn controls the Islamic hierarchy, the content of imams' sermons, and published Islamic materials. The Committee for Religious Affairs (CRA), under the Cabinet of Ministers, oversees registered religious activity and must approve all religious literature. A small number of unofficial, independent mosques were allowed to operate under the watch of official imams.

The law requires all religious groups and congregations to register and provides strict and burdensome registration criteria, including a requirement that each group present a list of at least 100 national citizen members to the local branches of the MOJ. This and numerous other provisions, such as a requirement that a congregation already have a valid legal address,

enabled the government to find technical grounds for denying a group's registration petition, such as grammatical errors in a group's charter. This process suppressed the activities of Muslims who sought to worship outside the system of state sponsored mosques, as well as members of unregistered Christian churches and other groups.

Any religious service conducted by an unregistered religious organization is illegal. Police occasionally broke up meetings of unregistered groups, which were generally held in private homes (see section 1.f.). Members of some Christian evangelical congregations were detained during the year and occasionally beaten by authorities. Members of the registered Pentecostal church in Tashkent reported that police raided a worship service in April. On November 30 and December 1, video tape of that raid appeared in a documentary film on government television which warned viewers against associating with evangelical Christians. On April 12, police raided several Jehovah's Witnesses worship services across the country on that church's annual holy day. The Greater Grace Church in Samarkand also reported continuing harassment from authorities. Religious groups are prohibited from forming political parties and social movements.

During the year the number of registered religious congregations increased by 25 to 2,226 registered religious groups, of which 2,046 were Muslim. Local authorities continued to block the registration or reregistration of evangelical Christian congregations in Tashkent, Samarkand, Guliston, Chirchiq, Gazalkent, Andijon, and Nukus. The International Church of Tashkent, a Protestant nondenominational church ministering exclusively to the international community, has been unable to obtain registration for several years, due in part to its inability to meet the legally required minimum of 100 members who are citizens of the country. Jehovah's Witnesses in Tashkent were unable to obtain registration. On August 25, the government canceled the registration of the Jehovah's Witnesses congregation in Ferghana Province, accusing members of "aggressive missionary work." Out of the 11 Jehovah's Witnesses' churches in the country, only the one in Chirchiq was registered at year's end. Police routinely questioned, searched, and arbitrarily fined individual members of Jehovah's Witnesses throughout the country. On April 12, as in the previous year, police and security personnel disrupted Jehovah's Witnesses meetings in Tashkent and several other cities and arrested approximately 100 church members. Most were released soon afterwards, but some were subjected to longer administrative detention, some were reportedly beaten by police, and several were required to pay small fines.

Most Muslims arrested for religious reasons were tried for anticonstitutional activity and participating in "religious extremist, separatist, fundamentalist, or other banned organizations," a charge that encompasses both political and religious extremism. The overwhelming majority of those arrested on this charge were accused of HT membership. The government also arrested members of other groups that it broadly labeled Wahhabi. Individuals arrested on suspicion of extremism often faced severe mistreatment including torture, beatings, and particularly harsh prison conditions, and were typically sentenced to between 7 and 12 years in jail (see sections 1.c. and 1.d.). Prison authorities reportedly did not allow many prisoners suspected of Islamic extremism to practice their religion freely and, in some circumstances, did not allow them to own a Koran. Authorities reportedly punished inmates who attempted to fulfill their religious obligations against prison rules, or who protested the rules themselves, with solitary confinement and beatings.

In past years the government's campaign against extremists resulted in official suspicion of more religiously observant (yet nonextremist) persons, including frequent mosque attendees, bearded men, and veiled women. In practice this approach often resulted in the government singling out observant Muslims for surveillance or harassment based on outward expressions of their religious belief. During the year there were no reports of arrests or harassment of Muslim believers on this basis. While a large and increasing number of young men attended Friday prayers in general, hardly any were bearded. The law prohibits the wearing of "cult robes" (religious clothing) in public except by those serving in religious organizations; however, this provision did not appear to be enforced. On August 9, the government-controlled newspaper *Turkiston* published an editorial warning against wearing white skullcaps, which the author associated with Islamic extremism. In November, according to the Forum 18 News Service, Andijon Province authorities ordered that mosques cease the traditional call to prayer, that teenage boys be barred from mosque attendance, and that Muslim clerics be prohibited from participating in wedding services.

The government did not consider repression of groups such as HT to be a matter of religious freedom but directed against those who allegedly advocated overthrowing the government. Unlike in prior years, there were no reported arrests or prosecutions of members of Tablighi Jamaat, an Islamic group with origins in South Asia.

There were no developments regarding the February 2005 case of two Sufi Muslims who claimed authorities tortured them while in detention (see section 2.c.).

On April 19, the Tashkent Province Criminal Court convicted eight men from the town of Yangiyl of unregistered religious activity and sentenced seven of them to three years of compulsory labor and one man to two years in prison. Prosecutors initially charged the men with membership in a banned extremist organization, which would have carried a maximum penalty of 15 years' imprisonment; however, for unspecified reasons, prosecutors reduced the charges during the trial. Observers reported that the evidence presented in court rested entirely upon testimony of a convicted thief, and that other court testimony did not implicate the defendants in any illegal activity (see section 1.c.).

During the year several persons were prosecuted and convicted of religious extremism and membership in an unregistered religious group for their affiliation with Akromiya. Religious experts claimed that Akromiya is a religious association that promotes business, not extremism.

Many trials were related to the May 2005 Andijon events (see section 1.a.). In public statements the government referred to all on trial, in prison, and those killed on May 13, 2005, as religious extremists. During the year approximately 70 persons were convicted of various charges, including Islamic extremism, murder, terrorism, and anticonstitutional activity in connection with the Andijon events, in addition to 187 convicted in 2005. During the year many of those convicted in 2005 appealed their convictions, resulting in reductions of sentences in several cases. All Andijon related trials during the year were closed to outside observers, and details of the cases, including names of defendants and lengths of sentences, were not available.

During the year the government tried and convicted eight Muslims who were deported from Kazakhstan in November 2005 (see section 1.d.). Authorities committed one of the nine total returnees, Shoirmat Shorakhmetov, to an institution for the criminally insane and did not place him on trial. Most were followers of Imam Abidkhan Nazarov, an influential Tashkent cleric who was dismissed from his position in 1995, fled to Kazakhstan, and was resettled to a third country as a refugee in March. Nazarov's followers were principal targets of the government's efforts against extremism. On April 12, the Tashkent City Criminal Court convicted two of the returnees, Sharafutdin Latipov and Nozim Rakhmonov, of membership in a religious extremist organization and sentenced them to six years' imprisonment. On September 15, the Tashkent Province Criminal Court convicted the most prominent defendant, Imam Ruhitdin Fakhrutdinov, on charges of religious extremism and terrorism in connection with the 2004 terrorist bombings in Tashkent and Bukhara, and sentenced him to 17 years' imprisonment. Other defendants in the group of returnees received sentences averaging approximately six years' imprisonment. While the trials were not officially closed to outside observers, court guards barred trial monitors from the proceedings.

On August 3 and August 11, courts in the Tashkent Province convicted a total of 29 men of HT membership in two separate trials and sentenced them to prison terms between one and 13 years. Several defendants in one of the trials testified that their confessions had been coerced through severe beatings (see section 1.c.).

Christians who tried to convert Muslims or who had among their congregations members of traditionally Muslim ethnic groups often faced official harassment, legal action, or, in some cases, mistreatment. The law prohibits proselytizing and severely restricts activities such as the import and dissemination of religious literature. Uzbek society is generally tolerant of religious diversity but not of proselytizing. Government officials have specifically cited the Jehovah's Witnesses and Pentecostals as extremists and "militant missionaries" and have targeted them for harassment. The government accused employees of four Western based NGOs--CAFE, Crosslink Development International, Global Involvement Through Education, and Partnership in Academics and Development--of illegal religious activity, including proselytizing, in its decision to close them (see section 2.b.). While these organizations are faith-based, all denied conducting any religious activity in the course of their work.

On April 12, approximately 100 members of Jehovah's Witnesses were detained in several coordinated raids in Tashkent, Karshi, and five other cities during worship services on their annual holy day. Similar raids took place during the same services in March 2005. Jehovah's Witnesses reported several instances of police brutality in the course of the raids. According to reports from Jehovah's Witnesses, most of those detained were released within a day, several with administrative fines. On April 26, authorities detained and deported a Russian citizen attorney upon his arrival at the Tashkent airport as he was traveling to Karshi to defend members of the group who were on trial.

In two reported instances authorities deported to Russia members of the Vifaniya (Bethany) Baptist Church without stating a cause. Both deportees had been residents of Tashkent for several years; one was a Russian citizen and the other was stateless (see section 2.d.).

State media propagated a policy of opposition to evangelical Christianity and missionary activity. On November 30 and December 1, government television broadcast a two-part documentary entitled Hypocrisy which profiled evangelical Christian groups, including the Pentecostal Church and Jehovah's Witnesses. The program labeled such groups as "dangerous" and alleged that foreign NGOs carried out illegal missionary activity in the country in the guise of charity with the aim of turning converts into "spiritually poor zombies" and fomenting religious conflict.

The law limits religious instruction to officially sanctioned religious schools and state approved instructors and permits no private instruction or the teaching of religion to minors without parental consent. There were no reports of active efforts to prevent parents teaching religion to their children. On June 26, according to the newspaper Novyy Vek, authorities closed a religious school for children in Tashkent Province and charged two teachers with involvement in a religious extremist organization.

A state religious censor approved all religious literature. The government controlled the publication, import, and distribution of religious literature, discouraging and occasionally blocking the production or import of Christian literature in the Uzbek language, although Bibles in other languages were available. The government required a statement in every domestic publication indicating the source of its publication authority, for example the phrase "permission for this book was granted by the CRA," or "this book is recommended by the CRA." Possession of literature deemed extremist could lead to arrest and prosecution. Religious literature imported illegally was subject to confiscation and destruction.

On June 22, President Karimov signed into law a series of amendments concerning religious literature. An amendment to the administrative code punishes "illegal production, storage, import or distribution of materials of religious content" with a fine of 20 to 100 times the minimum monthly wage for individuals, or 50 to 100 times the minimum monthly wage for officials of organizations, together with confiscation of the materials and the means of publication and distribution. A new article of the criminal code addresses the same offense, punishing those already convicted under the corresponding article of the administrative code with a fine of 100 to 200 times the minimum monthly wage or "corrective labor" of up to three years. Other changes introduced simultaneously to the criminal and administrative codes punish the production and distribution of "literature promoting racial and religious hatred."

The government had not implemented any of the recommendations of a 2003 Organizations for Security and Cooperation in Europe (OSCE) expert panel that concluded the Religion Law and associated statutes were in violation of international norms. The OSCE specifically cited bans on proselytizing, private religious instruction, and the criminal status of activities by unregistered religious organizations.

The government provided logistical support for 5,000 selected Muslim citizens to participate in the hajj. The government required all pilgrims to travel as part of an officially organized group at a set price of approximately \$2,400 (3 million soum). According to the Forum 18 News Service, the number of pilgrims allowed was only a fraction of the possible number allowable under Saudi Arabia's quota system, and less than the number of citizens who wished to participate. According to reports applications for hajj participation were subject to approval by neighborhood committees and other government bodies. However, there were no published criteria for participation.

Societal Abuses and Discrimination

There were persistent reports of discrimination against and harassment of ethnic Uzbek Muslims who converted to Christianity. Bakhtitor Tuychiyev, the ethnic Uzbek pastor of the Full Gospel Pentecostal Church in Andijon, reported frequent harassment by authorities, including threats of eviction from his home.

There were no reports of anti-Semitic acts or pattern of discrimination against Jews. There were eight registered Jewish congregations and the World Jewish Congress estimated the Jewish population at approximately 20,000, concentrated mostly in Tashkent, Samarkand, and Bukhara. Their numbers were declining due to emigration, largely for economic reasons. Unlike previous years there were no reports of HT members distributing anti-Semitic fliers. Although the religious press carried initial stories speculating on anti-Semitic motives for the February 25 death from head injuries of a Tashkent Jewish community leader, Avraam Yagudayev, and the June 8 murders of a secretary to prominent a Tashkent based Rabbi, Karina Loifer, and her mother, preliminary investigations did not indicate that anti-Semitism motivated these deaths.

For a more detailed discussion, see the [2006 International Religious Freedom Report \(//2009-2017.state.gov/j/drl/rls/irf/2006/\)](https://2009-2017.state.gov/j/drl/rls/irf/2006/).

d. Freedom of Movement within the Country, Foreign Travel, Emigration, and Repatriation

The constitution and law provide for free movement within the country and across its borders, although the government severely limited this right in practice. Permission from local authorities is required to move to a new city. The government rarely granted permission to move to Tashkent, and local observers reported that persons had to pay bribes of up to \$80 (100,000 soum) to obtain registration documents required to move.

The government required citizens to obtain exit visas for foreign travel or emigration, and while it generally granted these routinely, local officials often demanded a small bribe. In 2005 the government introduced a registration system requiring citizens to obtain a special stamp from local authorities in their place of residence to leave the country. Citizens continued generally to be able to travel to neighboring states, and the new stamp requirement was not uniformly enforced. Land travel to Afghanistan, however, remained difficult, as the government maintained travel restrictions on large parts of Surkhandarya Province bordering Afghanistan, including the border city of Termez. Citizens needed permission from the NSS to cross the border, while Afghans did not need permission, aside from a visa, to enter the country to trade.

In several instances during the year, the government denied exit visas to journalists and human rights activists. In late March authorities denied an exit visa to journalist Alisher Taksanov, and on May 12, the government denied an exit visa to Alo Khojayev, editor in chief of the news Web site Tribune.uz (see section 2.a.). Authorities justified the actions by saying only that the journalists' travel abroad was inappropriate. In August independent journalist Jamshid Karimov applied for an exit visa; authorities seized his passport, and on September 12, they arrested him and committed him to a psychiatric institution (see sections 1.c. and 2.a.).

Foreigners with valid visas generally could move within the country without restriction; however, visitors required special permission to travel to Surkhandarya Province bordering Afghanistan.

Authorities in some cases delayed or prevented entry of foreign diplomats, as well as other foreign nationals, on political grounds. Those affected included a Russian citizen attorney who was deported upon arrival at the Tashkent airport in April as he traveled to defend Jehovah's Witnesses in court cases (see section 2.c.).

The law does not explicitly prohibit forced exile, but the government did not generally employ it. However, in August authorities deported to Russia two members of the Vifaniya (Bethany) Baptist Church without stating a cause. Both deportees had been residents of Tashkent for several years; one was a Russian citizen and the other was stateless (see section 2.c.). At year's end several opposition political figures and human rights activists remained in voluntary exile.

Emigration and repatriation were restricted in that the law does not provide for dual citizenship. In practice returning citizens had to prove to authorities that they did not acquire foreign citizenship while abroad, or face prosecution. In practice citizens often possessed dual citizenship and traveled without issue. In some cases individuals who had previously emigrated and/or acquired foreign citizenship while abroad and who were traveling in former Soviet countries that enforced the Uzbek exit permission regime had difficulty departing.

Protection of Refugees

The law does not provide for the granting of asylum or refugee status in accordance with the 1951 UN Convention relating to the Status of Refugees and its 1967 protocol, and the government has not established a system for providing protection to refugees. In practice the government provided some protection against refoulement, the return of persons to a country where they feared persecution. The government did not force persons given refugee status by the UNHCR to leave the country, according to a 1999 agreement. Unlike in previous years, in practice the government did not cooperate with the UNHCR in allowing it to provide assistance to refugees and asylum seekers.

On March 17, the government ordered UNHCR to close its Tashkent office within one month, stating the agency had fulfilled its mission. Earlier the government had criticized the agency for its assistance to Uzbek refugees who had fled into Kyrgyzstan following the May 2005 Andijon unrest. Upon UNHCR's closure in April, the UNDP assumed some of UNHCR's humanitarian functions and continued to assist with monitoring and resettlement of the approximately 1,800 refugees who remained in the country at year's end.

The government considered the Afghan and Tajik refugee populations economic migrants and subjected them to harassment and bribe demands when they sought to regularize their status as legal residents. Such persons could be deported if their residency documents were not in order. Most Tajik refugees were ethnic Uzbeks; unlike their Afghan counterparts, Tajik refugees were able to integrate into and were supported by the local population. Although most Tajik refugees did not face societal discrimination, many of them faced the possibility of becoming officially stateless, as many carried only old Soviet passports rather than Tajikistan passports. Although the government generally tolerated the presence of Afghan refugees, they faced protection problems. There were isolated reports of harassment and detention of UNHCR-mandated Afghan refugees by local police; however, the extent of the problem was not known. The UNHCR reported that Afghan refugees had no access to the legal labor force and, therefore, had limited means to earn a livelihood.

The government pressured several other countries to forcibly return citizens who were under UNHCR protection in those countries. On February 14, Ukrainian authorities returned to government custody 10 asylum seekers whom it accused of involvement in the Andijon events. In July, 12 refugees, who had fled the country after the Andijon events, returned to their homes from a third country, where they had been resettled. There were reports that government authorities had pressured relatives of these refugees to urge them to return home. On August 9, Kyrgyz authorities returned to government custody four UNHCR mandate refugees--Jahongir Maksudov, Rasul Pirmatov, Odiljon Rahimov, and Yakub Tashbaev--who had fled after the Andijon events, as well as one asylum seeker, Fayejzon Tajihalilov. On October 24, Russian authorities returned asylum-seeker Rustam Muminov to government custody after he had applied to the UNHCR for refugee status. Government authorities accused Muminov of involvement in the Andijon events. Previously, in November 2005, Kazakh authorities returned nine asylum seekers to the country, some of whom had registered with the UNHCR (see sections 1.c., 1.d., and 2.c.). The group included former Tashkent Imam Ruhitdin Fakhрутdinov. With only two reported exceptions, the returnees were held in incommunicado detention, and the government did not allow relatives or other outsiders to monitor their condition.

In 2005 HRW, AI, and other sources reported that authorities pressured relatives of citizens who had fled the country following the events in Andijon and coerced them to travel to refugee camps in Kyrgyzstan to ask them to return. Uzbek security forces were also seen outside camps in Kyrgyzstan, and, in some cases, plainclothes officers infiltrated the refugee population and reportedly attempted to remove persons from a refugee camp by force.

Section 3 Respect for Political Rights: The Right of Citizens to Change their Government

The constitution and law provide citizens with the right to change their government; in practice this was not possible through peaceful and democratic means. The government severely restricted freedom of expression and repressed the political opposition (see sections 1.c., 1.d., and 2.a.). The government was highly centralized and was ruled by President Karimov and the executive branch through sweeping decree powers, primary authority for drafting legislation, and control of government appointments, most of the economy, and the security forces.

Elections and Political Participation

President Karimov was reelected in 2000 to a second term. The OSCE declined to monitor the election, determining preconditions did not exist for it to be free and fair. A 2002 referendum, which multilateral organizations and foreign embassies also refused to observe, extended presidential terms from five to seven years. In 2004 parliamentary elections were held for representatives to the lower chamber; an OSCE limited observer mission concluded the election fell significantly short of international standards for democratic elections. In January 2005 a new upper chamber, or senate, of the parliament was formed; 84 of the 100 members of the chamber were selected by regional legislatures, and President Karimov personally appointed the remaining 16. Five registered progovernment political parties held the majority of seats in the directly elected lower house of parliament; the remainder consisted of nominally independent politicians tied to these progovernment parties. These parties, created with government assistance and loyal to President Karimov, were the only ones permitted to participate in the 2004 parliamentary elections. Many government officials were members of the People's Democratic Party of Uzbekistan, the country's largest party. The party did not appear to play a significant role in government decision making, which President Karimov and other government leaders dominated.

The law makes it extremely difficult for opposition parties to organize, nominate candidates, and campaign. Twenty thousand signatures are required on any application to register a new party. The procedures to register a candidate are burdensome, and the Central Election Commission (CEC) may deny registration. A presidential candidate must present a list of 700,000 signatures in order to register and is prohibited from campaigning without registration. The CEC may deny registration of presidential candidates if they would "harm the health and morality of the people." Parties and candidates that are denied registration have no right of appeal. The law allows the MOJ to suspend parties for up to six months without a court order. The government also exercised control over established parties by controlling their financing. In March 2005 the Cabinet of Ministers issued a decree giving the MOJ control over state funds to parties. Under the decree the MOJ may adjust funding on a monthly basis according to the size of a party's parliamentary caucus and the ministry's judgment as to whether the party is acting in accordance with its charter, among other factors.

In addition to registered political parties, only citizen initiative groups with 300 or more members may nominate parliamentary or presidential candidates. Initiative groups may nominate parliamentary candidates by submitting signatures of at least 8 percent of the voters in an election district. For presidential candidates a list of 150,000 signatures is required. Except for registered political parties or initiative groups, organizations were prohibited from campaigning, and candidates were allowed to meet with voters only in forums organized by precinct election commissions. Only the CEC may prepare and release presidential campaign posters.

The law prohibits judges, public prosecutors, NSS officials, servicemen, foreign citizens, and stateless persons from joining political parties. The law prohibits parties based on religion or ethnicity; those that oppose the sovereignty, integrity, and security of the country and the constitutional rights and freedoms of citizens; or those that promote war, or social, national, or religious hostility, or those that seek to overthrow the government.

The government frequently harassed members of unregistered political organizations (see section 2.b.). In November the Birlik opposition political party applied with the MOJ for registration for the sixth time. Authorities most recently denied registration to the party in April 2005. Birlik members were among those arrested and detained in connection with the 2005

Andijon events. The leaders of three of the four unregistered opposition political parties Mohammed Solikh of Erk (convicted on terrorism charges in absentia in 1999), Abdurakhim Polat of Birlik, and Babur Malikov of the Free Farmers Party remained in voluntary exile.

There were 21 women in the 120 member lower chamber of the parliament, and 15 in the 100 member senate. There was one woman in the 28 member cabinet.

There were 9 members of ethnic minorities in the lower house of parliament and 15 minorities in the senate; the number of members of ethnic minorities in the cabinet was unknown.

Government Corruption and Transparency

There was a widespread public perception of corruption throughout society, including in the executive branch. It was generally accepted that applicants could buy admission to prestigious educational institutions with bribes. Likewise, bribery was widespread in the traffic enforcement system, and there were several reports that bribes to judges influenced the outcomes of civil suits. However, it was also reported that local administrative or police officials were removed from office in isolated cases in response to charges of corruption.

The law states that all government agencies must provide citizens with the opportunity to examine documents, decisions, and other materials affecting their freedoms. In practice the government seldom respected these rights. The public generally did not have access to government information, and information normally considered in the public domain was seldom reported. In 2004 the NGO Article 19 Global Campaign for Free Expression released an analysis of the country's secrecy and freedom of information laws, which concluded that the types of information that can be considered classified, and thus protected by the state, were so broad as to include virtually all information.

Section 4 Governmental Attitude Regarding International and Nongovernmental Investigation of Alleged Violations of Human Rights

A number of domestic human rights groups operated in the country, although they were hampered by a fear of official retaliation. The government frequently harassed, arrested, and prosecuted human rights activists.

Two domestic NGOs Ezgulik and the Independent Human Rights Organization of Uzbekistan were registered with the government; however, others were unable to register but continued to function at both the national and local levels. The government continued to deny registration to organizations such as the Human Rights Society of Uzbekistan (HRSU), Mazlum ("Oppressed"), and Mothers against the Death Penalty and Torture. Registration of human rights organizations was denied for a variety of reasons, including for grammatical errors in applications. Although these organizations did not exist as legal entities, they continued to function, albeit with difficulty. Unregistered groups had difficulty renting offices or conducting financial transactions and could not open bank accounts, making it virtually impossible to receive funds legally. Operating an unregistered group was technically subject to government prosecution.

In June the MOJ ordered two prominent Bukhara-based human rights NGOs, Humanitarian Legal Center of Bukhara and Bukhara Medical Association, to close. Both organizations had received foreign assistance. Following the May 2005 events in Andijon, hundreds of NGOs, including many human rights groups, were forced to close (see section 2.b.).

Government officials occasionally met with domestic human rights defenders, and individual rights defenders noted that they were able to successfully resolve some cases of abuse through direct engagement with authorities. A foreign NGO continued a 2004 initiative to provide a forum for domestic human rights defenders to meet with members of the police, prison directorate, and security services. The government cooperated on a limited basis with the NGO.

Police and security forces continued to increase harassment of domestic human rights activists and NGOs during the year. Security forces regularly threatened and intimidated human rights activists to prevent their activities. Unknown assailants frequently attacked human rights activists (see section 1.c.). Authorities regularly detained or arrested human rights activists and subjected them to house arrest, as in the case of Elena Uralyeva (see section 1.d.). In some cases authorities committed activists to involuntary psychiatric treatment (see section 1.c.), or filed false criminal charges against them (see section 1.d.). Additionally, government officials publicly accused specific activists of conspiring with international journalists to discredit the government.

On January 12, the Tashkent Province Criminal Court convicted Dilmurod Muhitdinov of the NGO Ezgulik of anticonstitutional activity in connection with the 2005 Andijon events and sentenced him to five years' imprisonment (see section 1.e.). On January 7, the same court convicted Saidjahon Zaynabitdinov of the Andijon based human rights NGO Apellyatsiya of extremist activity in connection with the Andijon events and sentenced him to seven years' imprisonment (see sections 1.d. and 1.e.).

In March police reportedly arrested human rights activist Shokhida Yuldosheva and subjected her to forced psychiatric treatment on two occasions (see section 1.c.). On March 6, the Tashkent Province Criminal Court sentenced Mutabar Tojiboyeva of the human rights NGO Ardent Hearts Club to nine years' imprisonment. Tojiboyeva was also later subjected to forced psychiatric treatment (see sections 1.c., 1.d, and 1.e.).

On April 29, authorities arrested Azam Farmonov and Alisher Karamatov of the HRSU and charged them with extortion. On June 15, a criminal court in Guliston convicted them and sentenced them to nine year's imprisonment.

On June 16, Yodgor Turlibekov, a human rights activist, was arrested and charged with "encroachment upon the president" (see sections 1.d. and 1.e.). Activists claimed the charge was politically motivated. On June 30, a Jizzakh court convicted activist Utkir Pardayev of the Independent Human Rights Organization of Uzbekistan on charges of hooliganism and sentenced him to four years imprisonment in a labor camp.

On July 19, a Jizzakh court convicted HRSU activist Mamarajab Nazarov of extortion and sentenced him to three and one half years' imprisonment. On several occasions government agents employed similar tactics against domestic journalists who reported on human rights issues (see section 2.a.).

On August 18, a group of 20 local women forcibly entered the Jizzakh home of human rights activist Bakhtiyor Hamroyev and severely beat him in the presence of a foreign diplomat. Hamroyev called police, who reportedly appeared on the scene and observed, but failed to render assistance. Human rights activists claimed that the attack was carried out in collaboration with police. During the attack, the assailants accused Hamroyev of being a traitor to his country.

The government also severely restricted activities of international human rights NGOs and subjected their employees to frequent harassment and intimidation. During the year the government forced the closure of most international NGOs dealing with human rights issues, including Freedom House and ABA/CEELI (see section 2.b.). In particular official media accused Freedom House of supporting terrorist organizations that plotted to overthrow the government during the May 2005 Andijon events. Government officials and the government controlled press frequently accused international NGOs of participating in an international "information war" against the country. During the year government prosecutors launched criminal investigations of international NGOs and their local partners, such as public defender centers and private law firms that defended human rights and political opposition activists, which the government had charged with antistate activity.

On April 26, authorities detained and deported a Russian citizen attorney upon his arrival at the Tashkent airport on his way to Karshi to defend members of Jehovah's Witnesses who were on trial (see section 2.c.). Following a July 7 government audit of the NGO HRW, the MOJ criticized the organization for publishing "biased and tendentious" information about the human rights situation in the country. On December 21, customs authorities detained a local employee of HRW for several hours at the Tashkent airport, confiscated a computer, and accused her of transporting documents constituting a threat to state security. The investigation was pending at year's end.

The government continued to restrict the activities of international bodies and foreign diplomatic missions and severely criticized their human rights monitoring activities and policies. On March 17, the government ordered the closure of UNHCR's Tashkent office, having harshly criticized the institution for its assistance to refugees following the 2005 Andijon violence (see section 2.d.). The government criticized the OSCE's focus on human rights as unwarranted interference in the country's internal affairs. On July 1, following lengthy negotiation with the government, the OSCE was forced to reorganize its mission in Tashkent, with a substantially reduced emphasis on human rights programming. On several occasions police and other government agents harassed and threatened human rights activists who met with foreign diplomats and ordered them to cease contact with foreigners. The government denied accreditation to some foreign diplomats, thus forcing them to leave the country, and criticized others for meeting with members of unregistered organizations.

The government continued to defy international demands for an independent international investigation into the May 2005 Andijon unrest. Following the May violence in Andijon, foreign governments, the UN, the OSCE, the European Union (EU), and other international organizations called on the government to allow an independent international investigation. The government repeatedly refused to do so and instead formed a "diplomatic monitoring group" consisting of selected foreign diplomatic representatives who were invited to periodic meetings to hear the conclusions of the prosecutor general's investigation. According to participants in the group, the process was not transparent. In July 2005 the UNHCR released a report on the Andijon violence, based on a mission to refugee camps in neighboring Kyrgyzstan, which concluded, "Consistent, credible eyewitness testimony strongly suggests that grave human rights violations... were committed by Uzbek military and security forces... It is not excluded... that the incidents amounted to a mass killing." During the week of December 11 to 15, EU representatives visited the country to discuss the Andijon events, and human rights issues more broadly, with a view towards renewing a regular dialogue on these issues. At year's end neither party had published results of the talks.

The human rights ombudsman's office, affiliated with the parliament, had the stated goals of promoting observance and public awareness of fundamental human rights, assisting in shaping legislation to bring it into accordance with international human rights norms, and resolving cases of alleged abuse. The ombudsman may mediate disputes between citizens and the government, and it may make recommendations to modify or uphold decisions of government agencies, but its recommendations are not binding. The ombudsman has offices in all provinces of the country, as well as in the Karakalpakstan Autonomous Republic and Tashkent. During the year the office handled hundreds of cases, a large majority of which dealt with abuse of power and various labor and social welfare issues. The ombudsman published reports identifying the most serious violations of human rights by government officials; the majority of these involved procedural violations and claims of abuse of power by police and local officials. Throughout the year the ombudsman's office hosted meetings and conferences with law enforcement, judicial representatives, and limited international NGO participation, to discuss its mediation work and means of facilitating protection of human rights. During the year the ombudsman's office reported that it placed representatives in selected prisons to monitor treatment of inmates and also began establishing a network of college and university ombudsmen to assist in resolving student-faculty disputes.

The National Human Rights Center is a government agency responsible for educating the population and officials on the principles of human rights and democracy and for ensuring the government complies with its international obligations to provide human rights information. In the view of many observers, the center was neither independent nor effective.

Section 5 Discrimination, Societal Abuses, and Trafficking in Persons

The law prohibits discrimination on the basis of race, gender, disability, language, or social status; the constitution prohibits discrimination on the basis of race, gender, disability, and language, but does not specifically prohibit discrimination on the basis of disability. Societal discrimination against women and persons with disabilities, and child abuse persisted.

Women

The law does not specifically prohibit domestic violence, which remained a common problem. While the law punishes physical assault, police often discouraged women from making complaints against abusive husbands, and abusers were rarely taken from home or jailed. Wife beating was considered a personal family affair rather than a criminal act; such cases were usually handled by family members or elders within the neighborhood committee and rarely came to court. Local authorities emphasized reconciling husband and wife, rather than addressing the abuse. A 2002 HRW report on neighborhood committees concluded that although the committees played no formal role in divorce proceedings, in practice women frequently were unable to obtain a divorce without the committee's approval, which was seldom granted even in cases of obvious abuse. NGOs working on domestic violence problems reported that local government officials cooperated on education programs, with a number of initiatives taken to increase cooperation with neighborhood committees. Some police and religious leaders participated in NGO training.

The law prohibits rape. Marital rape is implicitly prohibited under the law, although there were no cases known to have been tried in court. Cultural norms discouraged women and their families from speaking openly about rape, and instances were almost never reported in the press.

As in past years, there were many reported cases in which women attempted or committed suicide as a result of domestic violence. Local media reported 54 instances of suicide by women in Andijon Province during the year. Most cases went unreported, and there were no reliable statistics on the problem's extent. Observers cited conflict with a husband or mother in law, who by tradition exercised complete control over a young bride, as the usual reason for suicide. NGOs serving survivors of suicide attempts reported varying degrees of cooperation from individual officials, neighborhood committees, and local governments.

In 2005 there were reports in independent press and from human rights activists and healthcare workers that hospitals, primarily in the Ferghana Valley, performed involuntary hysterectomies on women shortly after they had given birth. While authorities claimed that hysterectomies were only performed in cases of medical need, NGO and other sources reported several cases of medically unnecessary procedures. In other cases it was reported that doctors implanted contraceptive devices in women who had recently given birth, without their prior knowledge or consent. There were no new cases of such practices reported during the year (see section 1.f.).

The law prohibits prostitution; however, it was an increasing problem, particularly among ethnic minorities. Police enforced the laws against prostitution unevenly; some police officers harassed and threatened prostitutes with prosecution to extort money.

Trafficking in women for sexual exploitation remained a problem (see section 5, Trafficking).

The law does not prohibit sexual harassment. Social norms and the lack of legal recourse made it difficult to assess the scope of the problem.

The law prohibits discrimination against women; however, traditional, cultural, and religious practices limited their role in society. Women were severely underrepresented in high level positions and in the industrial sector. A deputy prime minister at the cabinet level was charged with furthering the role of women in society and headed the National Women's Committee. In practice the committee was widely viewed as ineffective, and at times even obstructed the work of NGOs promoting women's rights.

Children

The government was generally committed to children's rights and welfare, although it did not adequately fund public education and health care.

The law provides for children's rights and for free compulsory education for 12 years through basic and secondary school. In practice shortages and budget difficulties meant that many education expenses had to be paid by families. Teachers earned extremely low salaries and routinely demanded regular payments from students and their parents. According to government statistics, 98 percent of children completed nine years of education through basic school. However, anecdotal evidence indicated that children increasingly dropped out of middle and high schools as economic circumstances continued to deteriorate. According to the UN Children's Fund (UNICEF), net secondary school attendance reflecting children who continue after enrollment was 70 percent for boys and 73 percent for girls.

The government subsidized health care, including for children, and boys and girls enjoyed equal access. As with education, low wages for doctors and poor funding of the health sector led to a widespread system of informal payments for services; in some cases this was a barrier to access for the poor. Those without an officially registered address, such as street children and children of migrant workers, did not have access to government health facilities.

Child abuse was a problem that was generally considered an internal family matter, although elders on neighborhood committees frequently took an interest at the local level in line with the committees' responsibilities to maintain harmony and order within the local community. There were no government led campaigns against child abuse, although efforts against trafficking involved the protection of underage victims.

Child marriage was not prevalent, although in some rural areas girls as young as 15 sometimes married in religious ceremonies not officially recognized by the state. According to UNICEF, 13 percent of young women were involved in child marriages.

There were reports that girls were trafficked from the country for the purpose of sexual exploitation and that girls were engaged in forced prostitution (see section 5, trafficking).

During the cotton harvest, many school children, particularly in rural areas, were forced to work in the cotton fields (see section 6.d.).

Trafficking in Persons

The law prohibits trafficking in persons; however, the constitution does not specifically prohibit it. Trafficking was a significant problem. A few NGOs reported that some local officials accepted bribes from traffickers; at year's end there were no reported investigations or prosecutions of corrupt officials.

The country was primarily a source and, to a lesser extent, a transit country for the trafficking of women and girls for the purpose of sexual exploitation and men for labor exploitation. There were no reliable statistics on the extent of the problem, although NGOs and the government reported labor trafficking was much more prevalent than trafficking for sexual exploitation, and was likely rising due to poor economic conditions. The International Organization for Migration (IOM) estimated in late 2005 that over 500,000 citizens annually fell victim to trafficking for labor and sexual exploitation. There were credible reports that women traveled to the United Arab Emirates (UAE), Kuwait, Bahrain, India, Israel, Georgia, Malaysia, Russia, South Korea, Thailand, Turkey, Japan, and Western Europe for the purpose of prostitution; some of them reportedly were trafficking victims. Labor trafficking victims were typically trafficked to Kazakhstan and Russia to work in the construction, agricultural, and service sectors. Some transit of trafficked persons may also have taken place from neighboring countries and to or from countries for which the country was a transportation hub Thailand, Malaysia, Indonesia, India, South Korea, and the UAE. Women between the ages of 17 and 30 were highly vulnerable to sexual exploitation, and men of all ages were targets for labor trafficking.

Traffickers operating within nightclubs, restaurants, or prostitution rings solicited women, many of whom had engaged in prostitution. In large cities such as Tashkent and Samarkand, traffickers used newspaper advertisements for marriage and fraudulent work opportunities abroad to lure victims. Travel agencies promising tour packages and work in Turkey, Thailand, and the UAE were also used to recruit victims. In most cases traffickers confiscated travel documents once the women

reached the destination country. Victims of labor trafficking were typically recruited in local regions and driven to Kazakhstan or Russia where they were often sold to "employers." Traffickers held victims in a form of debt bondage, particularly in the case of those trafficked for sexual exploitation.

Recruiters tended to live in the same neighborhood as the potential victim and often may have known the victim. These recruiters introduced future victims to the traffickers, who provided transportation, airline tickets, visas, and instructions about meeting a contact in the destination country.

The law prohibits all forms of trafficking and provides for prison sentences of five to eight years for international trafficking. The majority of convicted traffickers who received prison sentences served no time in prison. Recruitment for trafficking is punishable by six months' to three years' imprisonment and fines of up to approximately \$720 (900,000 soum). The recruitment charge may be brought against international or domestic traffickers. All law enforcement agencies are charged with upholding the antitrafficking provisions of the criminal code. During the year law enforcement authorities continued to focus on trafficking offenses, and the number of public service announcements and similar programs on state television regarding human trafficking rose. Enforcement was generally effective, but convicted traffickers were often amnestied and served little or no jail time. The government annually amnestied first offenders and those with sentences of less than 10 years; almost every convicted trafficker fell into one of these categories.

Government offices with responsibility for fighting trafficking included the MVD's Office for Combating Trafficking, its Crime Prevention Department, and Department of Entry-Exit and Citizenship; the NSS's office for Fighting Organized Crime, Terrorism, and Drugs; the Office of the Prosecutor General; the Ministry of Labor; the Consular Department of the Ministry of Foreign Affairs; and the State Women's Committee. The government cooperated on a limited basis with the IOM on trafficking issues.

Some local officials working at the MVD, customs, and border guards reportedly accepted bribes in return for ignoring instructions to deny exit to young women suspected to be traveling to work as prostitutes. Local sources claimed that officials were involved in document fraud and accepted bribes from persons attempting to travel illegally or from the traffickers themselves.

The government in some cases prosecuted victims of trafficking for illegal migration in the course of being trafficked. Repatriated victims often faced societal and familial problems upon return.

At year's end internationally supported NGOs operated two shelters to help victims reintegrate, one of which was opened during the year. During the year NGOs provided repatriation assistance to 368 trafficking victims. The IOM reported that police, consular officials, and border guards referred women returning from abroad who appeared to be trafficking victims to the organization for services. The government also routinely allowed the IOM to assist groups of returning women at the airport, help them through entry processing, and participate in the preliminary statements the victims gave to the MVD.

During the first half of the year, the OSCE continued cooperation on antitrafficking programs with local NGOs and schools. In March a local NGO in Termez, with the participation of law enforcement and local government officials, conducted seminars for secondary schools, placed antitrafficking notices in local newspapers, and developed informational brochures and educational manuals for teachers and students with OSCE support. Law enforcement and local government officials gave presentations on combating trafficking in persons and provided information on cases under prosecution. On May 23, the OSCE cooperated with a local NGO in Navoi and local authorities, to organize an antitrafficking youth forum for 150 volunteers, who in turn disseminated information in local schools about the nature and dangers of trafficking in persons. OSCE also translated a victim referral handbook into Uzbek and distributed it to NGOs, law enforcement bodies, government agencies, and other interested stakeholders. Law enforcement officials and local government officials actively participated in the forum and provided some funding.

During the year the government increased its focus on trafficking prevention. A specialized antitrafficking unit in the MVD established in 2004 continued to cooperate with NGOs on antitrafficking training for law enforcement and consular officials, as well as organizing public awareness campaigns.

Government controlled newspapers carried targeted articles on trafficked women and prostitution. In several cases during the year victims cited these awareness campaigns as their first contact with IOM and other antitrafficking NGOs. Government radio continued a weekly call in program for women who were involved in the sex trade, and government television broadcast numerous documentary features on trafficking. Government owned television stations worked with local NGOs to broadcast antitrafficking messages and to publicize the regional NGO hot lines that counseled actual and potential victims. The government worked with NGOs to place posters on trafficking hazards on public buses, in passport offices, and in consular offices abroad. As a result the IOM reported an increase in the number of calls to its 10 antitrafficking hot lines that were specifically directed at victim assistance. The hot lines received more than 16,000 calls during the year.

Persons with Disabilities

Although the law prohibits discrimination against persons with disabilities in the workplace and in education, the constitution does not specifically prohibit it, and there is no law specifically prohibiting such discrimination in housing or in access to state services. There was some societal discrimination against persons with disabilities, and children with disabilities were generally placed in separate schools. The government cared for persons with mental disabilities in special homes. The law does not mandate access to public places for persons with disabilities; however, there was some wheelchair access throughout the country. The law does not provide effective safeguards against arbitrary involuntary institutionalization. A special department and commission under the Ministry of Health was responsible for facilitating access for persons with disabilities to health care and a special department under the Ministry of Labor and Social Protection was responsible for facilitating employment of persons with disabilities.

National/Racial/Ethnic Minorities

The population was mainly Uzbek, with significant numbers of Russians, Tajiks, Tatars, and Kazakhs as well as ethnic Koreans.

The law prohibits employment discrimination on the basis of ethnicity or national origin; while the constitution does not specifically prohibit such discrimination, it does provide for the right of all citizens to work and to choose their occupation. However, Russians and other minorities frequently complained about limited job opportunities. Senior positions in the government bureaucracy and business generally were reserved for ethnic Uzbeks, although there were numerous exceptions.

The law does not require Uzbek language ability to obtain citizenship; however, language remained a sensitive issue. Uzbek is the state language, and the constitution requires that the president speak it. The law also provides that Russian is "the language of interethnic communication." Russian was spoken widely in the main cities, and Tajik was spoken widely in Samarkand and Bukhara.

Other Societal Abuses and Discrimination

There was social stigma against HIV/AIDS patients. People living with HIV reported social isolation by neighbors, public agency workers, health personnel, law enforcement officers, landlords, and employers after their HIV status became known. Recruits in the armed services found to be HIV positive were summarily expelled. A brochure produced by the MVD's Department of Corrections for its staff who deal directly with detainees focused primarily on the risk to staff of becoming infected during casual contact. A proposal from the National Institute of Virology recommended channeling HIV positive patients into clinics and laboratories closed off to the rest of the public. The government's restrictions on local NGOs left only a handful of functioning NGOs that assisted and protected the rights of persons with HIV/AIDS.

In October 2005 the government, in cooperation with UN agencies and NGOs, launched a national HIV/AIDS prevention program aimed at increasing awareness of the disease and curbing its spread. President Karimov's daughter, Lola Karimova, was a prominent spokesperson for the campaign.

Nearly all of the risk behaviors associated with being HIV positive, including prostitution, injecting drug use, and homosexual activity are crimes. Homosexual activity is punishable by up to three years' imprisonment. Some homosexuals reportedly left the country due to the restrictive environment.

Section 6 Worker Rights

a. The Right of Association

The law provides workers the right to form and join unions of their choice, although workers were unable to exercise this right in practice. The law declares unions independent of governmental administrative and economic bodies, except where provided for by other laws. In practice unions remained centralized and dependent on the government. There were no independent unions. The law prohibits discrimination against union members and officers; however, this prohibition was irrelevant due to unions' close relationship with the government.

b. The Right to Organize and Bargain Collectively

Unions and their leaders were not free to conduct activities without interference from the government. The law provides the right to organize and to bargain collectively; in practice the government did not respect these rights. Unions were government organized institutions that had little power, although they did have some influence on health and work safety issues.

The law states that unions may conclude agreements with enterprises, but because unions were heavily influenced by the state, collective bargaining in any meaningful sense did not occur. The Ministry of Labor and Social Protection and the Ministry of Finance, in consultation with the Council of the Federation of Trade Unions (CFTU), set wages for government employees. In the small private sector, management established wages or negotiated them individually with persons who contracted for employment.

The law neither provides for nor prohibits the right to strike. There were no reports of significant labor actions during the year.

There were no export processing zones.

c. Prohibition of Forced or Compulsory Labor

The constitution and law prohibit forced or compulsory labor, including by children, except as legal punishment or as specified by law; however, there were reports that such practices occurred, particularly during the cotton harvest (see sections 5 and 6.d.).

d. Prohibition of Child Labor and Minimum Age for Employment

The government did not effectively implement laws and policies to protect children from exploitation in the workplace. The national labor code establishes the minimum working age at 16 and provides that work must not interfere with the studies of those under 18. The law provides an exception to the minimum working age for children between the ages of 14 and 16, who may work a maximum of 20 hours per week when school is not in session and 10 hours per week when school is in session. Children between the ages of 16 and 18 may work 30 hours per week while school is not in session and 15 hours per week while school is in session. A 2001 government decree prohibits those under age 18 from engaging in manual cotton harvesting and other jobs with unhealthy working conditions; however, in rural areas children often helped to harvest cotton and other crops.

The large scale compulsory mobilization of youth and students to help in the fall cotton harvest continued in most rural areas. Such labor was poorly paid. There were occasional reports from human rights activists that local officials in some areas pressured teachers into releasing students from class to help in the harvest and in many areas, schools closed for the harvest. According to UNICEF, 15 percent of children were involved in child labor. Much child labor was concentrated in family organized cotton harvesting.

There were reports that girls were trafficked from the country for the purpose of sexual exploitation and that girls were engaged in forced prostitution (see section 5).

Enforcement of child labor laws is under the jurisdiction of the prosecutor general and the MVD and its general criminal investigators. The law provides both criminal and administrative sanctions against violators, but authorities did not punish violations related to the cotton harvest, and there were no reports of inspections resulting in prosecutions or administrative sanctions. Enforcement was lacking due to long-standing societal acceptance of child labor as a cheap method of cotton harvesting.

In July government television stations ran an International Labor Organization public service announcement on child labor with the approval of the Cabinet of Ministers and other governmental bodies.

e. Acceptable Conditions of Work

The Ministry of Labor and Social Protection, in consultation with the CFTU, sets and enforces the minimum wage. At year's end the minimum wage was approximately \$10 (12,420 soum) per month, which did not provide a decent standard of living for a worker and family.

The law establishes a standard workweek of 40 hours and requires a 24 hour rest period. Overtime pay exists in theory, but it was not usually paid in practice. Payment arrears of four to six months were common for workers in state owned industries, including government office workers and officials.

The Labor Ministry established and enforced occupational health and safety standards in consultation with unions, but reports suggest that enforcement was not particularly effective. The press occasionally published complaints over the failure of unions and the government to promote worker safety. While regulations provide for safeguards, workers in hazardous jobs often lacked protective clothing and equipment. Workers legally may remove themselves from hazardous work without jeopardizing their employment, although few workers, if any, attempted to exercise this right, as it was not effectively enforced.

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